

The Map Is Wrong

Disputed borders, phantom islands, and the strangest lines on earth — a cartographer's tour of geopolitical weirdness

Organization Challenger Deep

Date 2026-10-08

Every flat map of a spherical earth is a compromise: area and angle cannot both be preserved, so every projection chooses which truth to sacrifice. An equal-area design keeps the ratio of areas exact — squishing an equilateral triangle into a right isosceles triangle and arranging octants into a square leaves the equal-area property intact because area ratios are an affine invariant. What it cannot keep is shape.

A nautical chart is, by formal definition, a ratio: the distance between two points on the chart divided by the distance between the same two points measured on the surface of the earth. On a Mercator chart that ratio is not constant — the nominal scale printed in the title block is accurate only at the parallel of latitude specified in that title block, and it drifts everywhere else. That single caveat is the entire logic of the Mercator projection: it was engineered for mariners, and it sacrifices uniform scale so that a navigator working at a known latitude can still measure distances and plot courses off the chart in hand.

This section's evidence file carries a warning that belongs in the open: none of the chunks in this prompt define or quantify flexion or skewness. The honest statement of what can be said is therefore narrow, and it builds on Sections 1–2 rather than repeating them. Tissot's indicatrix was established in Section 1 as the point-by-point measure of angular distortion ω , computed from the meridian and parallel scale factors h and k and their intersection angle η' — the instrument that lets cartographers decompose a projection's error budget at any given point, and the one that underwrote Section 1's head-to-head comparison in which the newer square equal-area design held the lowest maximum distortion.

The equal-area family was already measured in Section 1: the Collignon quincuncial, Gringorten, and the newer square design were compared on average and maximum angular distortion, establishing that area can be made exact ($s \approx 1/\pi$) while shape cannot. But alternatives to Mercator differ in geometry alone — each rests on a prior choice about what "the earth's shape" means. The ellipsoid is that choice made concrete: a geometric shape closely approximating the geoid, a smooth mathematical surface on which exact calculations are possible that would not be practical on the geoid with its complex, irregular shape.

Why Every Map Lies a Little

Why all world maps are wrong: projections and distortion

Every flat map of a spherical earth is a compromise: area and angle cannot both be preserved, so every projection chooses which truth to sacrifice. An equal-area design keeps the ratio of areas exact — squishing an equilateral triangle into a right isosceles triangle and arranging octants into a square leaves the equal-area property intact because area ratios are an affine invariant ¹. What it cannot keep is shape. The price is measured point by point with Tissot's indicatrix: the maximum angular distortion ω at a location follows from the scale factors along the meridian (h) and parallel (k) and the angle η' at which they intersect ¹.

Quantified this way, the differences between "wrong" maps are stark. In a head-to-head comparison, the Collignon quincuncial averages 0.68 radians of angular distortion (standard deviation 0.18, maximum 1.05), Gringorten averages 0.52 (sd 0.31, max 1.05), and the newer square equal-area design averages 0.54 (sd 0.27) with the lowest maximum, 0.95 radians — roughly 54 degrees of angular error at its worst point ¹. Even the winner, then, mangles direction by tens of degrees somewhere on the map. The newer design was tuned by numerical optimization: the parameter ϕ_0 that minimized average ω came out very nearly $3\pi/8$ and was fixed there exactly ¹.

Area, by contrast, can be made exact. Tissot's indicatrix also yields the area scale factor s , which for the equal-area projection is constant across the whole map at $s \approx 0.318$ — identical to the value computed independently as the map's area ($x, y \in [-1, 1]$, area 4) divided by the unit sphere's 4π steradians, i.e. $1/\pi \approx 0.318$ ¹. The projection is invertible in closed form (via a vertex-oriented great-circle technique, detailed in its Appendix A), so the distortion is at least a known, reversible quantity rather than a hidden one ¹.

These are not abstract defects. The lines fought over in this report — 200-nautical-mile exclusive economic zones measured outward from coastal baselines ² — are drawn on charts that inherit exactly this distortion, and the legal vocabulary mapped onto them is itself unstable: the word “strait” has no legal meaning in the Law of the Sea Convention and is applied in its ordinary geographical sense, so whether a passage even counts as a strait can be disputed from the chart up ². The high seas are defined residually as everything outside the EEZ, territorial sea, internal waters, and archipelagic waters, and no state may claim sovereignty over any part of them ² — yet where those zones begin and end depends on projections that, at their worst, misstate angles by half a radian. When the three-mile territorial sea was standard, ships enjoyed high-seas freedom through any strait wider than six miles; the move to twelve-mile claims would have enclosed 116 international straits within territorial seas, shifting the legal regime of the world’s chokepoints by the stroke of a cartographic pen ². The map is wrong by geometry; the disputes begin when law pretends it is right.

A Square Equal-area Map Projection

11

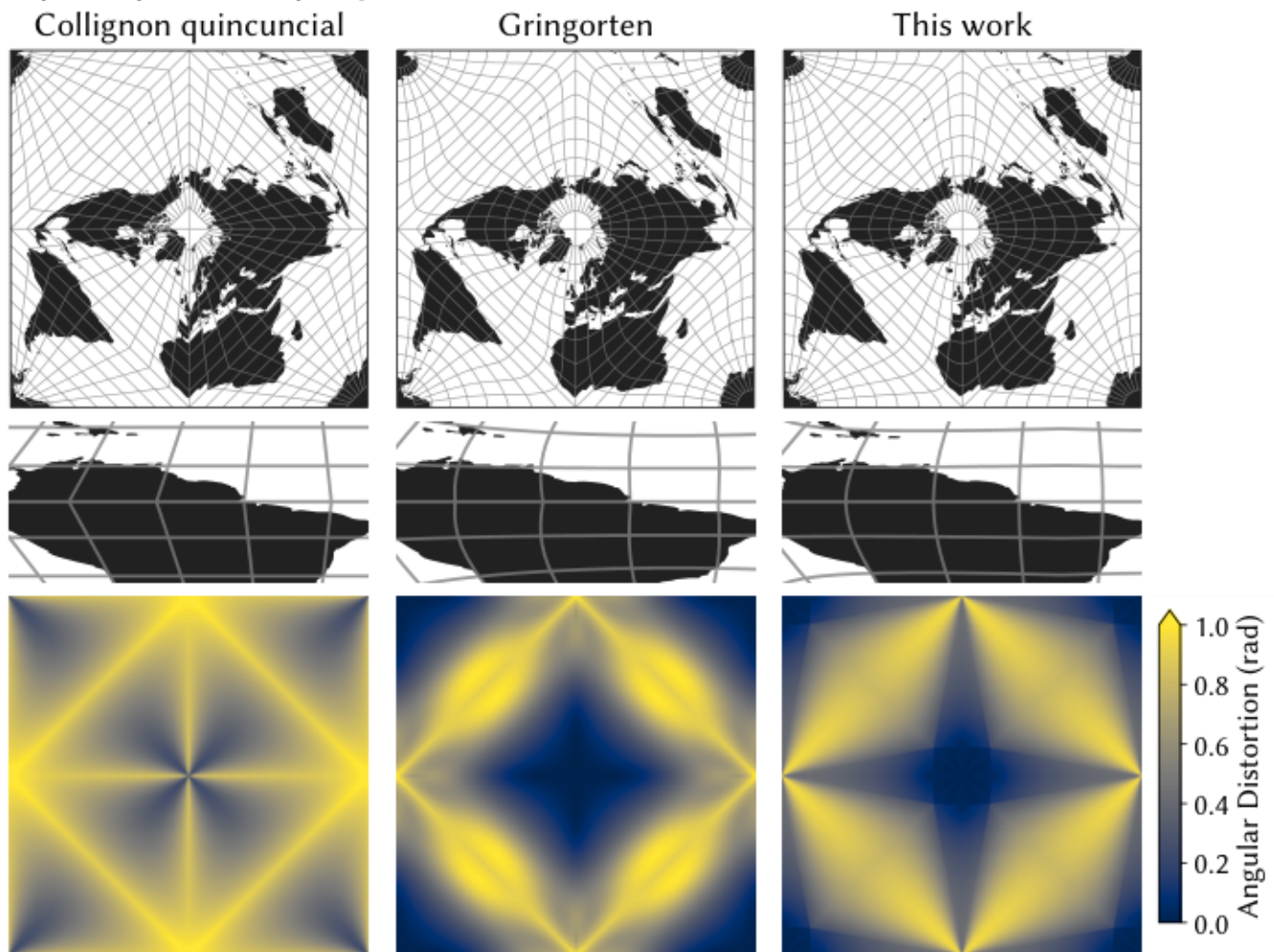


Exhibit. Map Projection 11 Collignon quincuncial Gringorten This work 1. Source: S0001.

The Mercator projection and the logic of navigation

A nautical chart is, by formal definition, a ratio: the distance between two points on the chart divided by the distance between the same two points measured on the surface of the earth ³. On a Mercator chart that ratio is not constant — the nominal scale printed in the title block is accurate only at the parallel of latitude specified in that title block, and it drifts everywhere else ³. That single caveat is the entire logic of the Mercator projection: it was engineered for mariners, and it sacrifices uniform scale so that a navigator working at a known latitude can still measure distances and plot courses off the chart in hand.

The rights exercised on those charts were, for most of modern history, governed by four long-standing principles: sovereignty in a territorial-sea belt widely but not universally recognized as three nautical miles wide, subject to a right of innocent passage for foreign vessels; equal rights including freedom of navigation beyond the territorial sea on the high seas; and, through straits used for international navigation, enhanced protection of innocent passage —

with most of the important straits retaining a belt of high seas through which all states' vessels moved freely ². The 1982 Convention then added transit passage through straits used for international navigation, permitting relatively free passage by ships, overflight by aircraft, and submerged transit by submarines through the territorial sea and even, under conditions, the internal waters of a coastal state ².

Every one of these regimes is drawn, asserted, and contested on charts. Delimitation itself carries two meanings, and the first is cartographic: the establishment, definition, and depiction on charts of the maritime zones — territorial sea, contiguous zone, exclusive economic zone, continental shelf — to which states are entitled ⁴. The lines are specified with surveyor's precision: an archipelagic state may join the outermost points of its outermost islands and drying reefs with straight baselines no longer than 100 nautical miles (3 percent of them up to 125), enclosing a water-to-land area ratio between 1:1 and 9:1 ⁵. On the high seas, every nation may sail ships under its flag and no state may claim sovereignty over any part of them ² — but the boundary where that freedom begins is a line on a Mercator chart whose scale was only ever true along one parallel.

So the Mercator projection's bargain runs deeper than geometry. It gave navigators a workable chart at the cost of honest scale, and international law then built its zones, baselines, and passages on top of that compromise. When a strait is said to connect high seas to high seas, or a baseline is said to run 100 nautical miles, the claim is only as true as the chart it is drawn on — and the chart, by its own title block, admits it is true in only one place.

Flexion, skewness, and Tissot's indicatrix

This section's evidence file carries a warning that belongs in the open: none of the chunks in this prompt define or quantify flexion or skewness. The honest statement of what can be said is therefore narrow, and it builds on Sections 1–2 rather than repeating them.

Tissot's indicatrix was established in Section 1 as the point-by-point measure of angular distortion ω , computed from the meridian and parallel scale factors h and k and their intersection angle η' — the instrument that lets cartographers decompose a projection's error budget at any given point, and the one that underwrote Section 1's head-to-head comparison in which the newer square equal-area design held the lowest maximum distortion. Flexion (the bending of great circles) and skewness (the lopsidedness of the indicatrix) are the large-scale distortion measures that belong in the same error budget — the Goldberg–Gott framework names them explicitly as the large-scale counterparts to the Tissot ellipse's local distortion ⁶ — but the retrieved evidence does not define or quantify them beyond those terms, so no figures for either are asserted here.

What the chunks do show is where the error budget lands hardest: on the chart itself. A line of equidistance between Indonesia and the Philippines was drawn graphically on British Admiralty charts BA 4507 — a Mercator projection at 1:3.5 million, true scale at 22°30' N — and BA 943 — also Mercator, 1:1.555 million at 6°45' N ⁷. The median line, once basepoints are selected, is an impartial construction: every point equidistant from the nearest basepoints of the two countries, so different cartographers produce the identical line ⁷. Impartial in geometry, that is — the chart it is drawn on still carries the distortion the indicatrix measures, and Section 2 showed a Mercator chart's stated scale is true only along one parallel.

Equal-area alternatives and the gnomonic cube

The equal-area family was already measured in Section 1: the Collignon quincuncial, Gringorten, and the newer square design were compared on average and maximum angular distortion, establishing that area can be made exact ($s \approx 1/\pi$) while shape cannot. But alternatives to Mercator differ in geometry alone — each rests on a prior choice about what “the earth's shape” means. The ellipsoid is that choice made concrete: a geometric shape closely approximating the geoid, a smooth mathematical surface on which exact calculations are possible that would not be practical on the geoid with its complex, irregular shape ³. Several reference ellipsoids exist — some approximating the geoid on a global basis, others over particular geographic regions — and the coordinates of any given point vary according to the reference ellipsoid in use; converting coordinates from one ellipsoid to another is known as transformation, and transformation parameters are available for most reference ellipsoids ³. A projection's truth is therefore relative twice over: to the ellipsoid it assumes and to the distortion trade-off it engineers. Change the ellipsoid and the same nominal coordinate names a different point on the earth — before any projection has even been drawn.

The gnomonic cube — the projection family that folds the sphere onto cube faces — has no definition, distortion figures, or comparison in this section's evidence prompt. The wider corpus names it as “a relatively simple multiply in-

interrupted projection," scored on the same six-measure error table (ellipticity, area, flexion, skewness, distance, boundary cuts) as the other interrupted alternatives ⁶. Its treatment here is otherwise limited to that open admission. The family of alternatives this evidence can substantiate remains the equal-area one from Section 1, where the newer square design traded the same area-exactness against the lowest maximum angular distortion of the three.

The nautical mile, the geoid, and geodetic datums

Every maritime limit in this report is measured in nautical miles, and every one of them is measured from a datum. The territorial sea is a belt of water of defined breadth not exceeding 12 nautical miles measured seaward from the territorial-sea baseline — the zone of coastal-state sovereignty over the water column, the airspace above it, and the seabed and subsoil below ³. The contiguous zone, contiguous to the territorial sea, lets the coastal state exercise control to prevent or punish infringement of its customs, fiscal, immigration, and sanitary laws — and it may not extend beyond 24 nautical miles from the baselines from which the territorial-sea breadth is measured ⁵. The nautical mile is the common currency of these claims; the datum decides what the currency buys.

The measurement backbone was set in Section 4: the ellipsoid approximates the geoid as a smooth mathematical surface on which exact calculations are possible; several reference ellipsoids exist; the coordinates of any given point vary according to the ellipsoid in use; converting between them is transformation. The Convention makes the datum a legal requirement, not a technical nicety: archipelagic baselines must be shown on charts of a scale adequate for ascertaining their position — or, alternatively, states may substitute lists of geographical coordinates of points, specifying the geodetic datum (Article 47(9)) ⁵. A boundary coordinate without a named datum is therefore legally incomplete: the same numbers name different points on different ellipsoids, and the Convention anticipates the dispute by demanding the datum be stated.

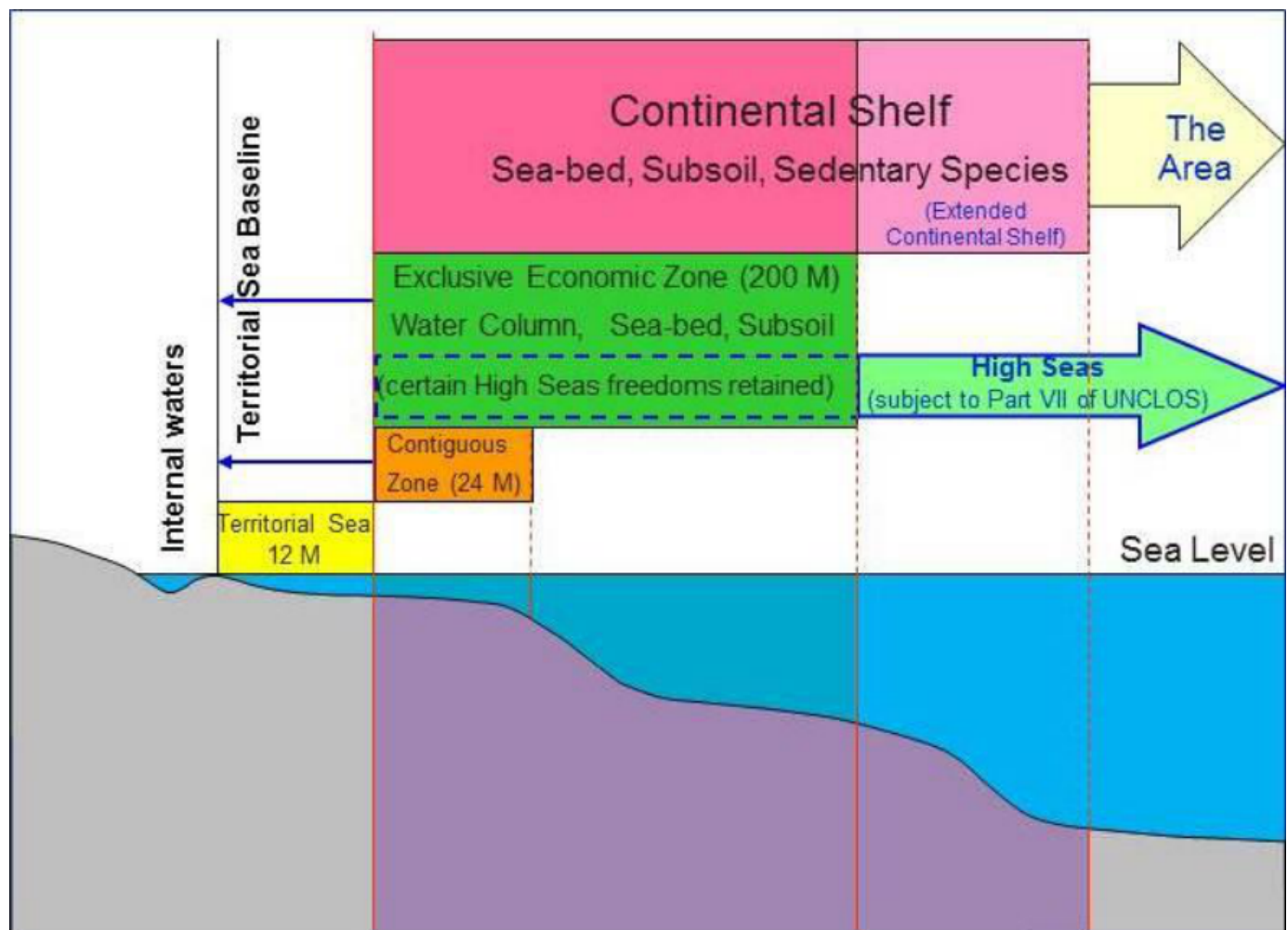


Exhibit. UNCLOS maritime zones measured from the baseline: internal waters, territorial sea (12 M), contiguous zone (24 M), exclusive economic zone (200 M), continental shelf and the Area (IHO TALOS Manual). Source: S0012.

Charting the seas: from paper charts to electronic navigation

The chart is where law becomes visible. Section 2 showed the nautical chart as a ratio that on Mercator is true only at the stated parallel; Section 5 made the geodetic datum a legal requirement on boundary coordinates; Section 3 showed median lines physically constructed on Admiralty charts BA 4507 and BA 943. The Convention closes the loop: an archipelagic state must clearly indicate the axis of its designated sea lanes and the traffic separation schemes it prescribes on charts to which due publicity is given ³, and archipelagic baselines must appear on charts of a scale adequate for ascertaining their position — or be replaced by coordinate lists that specify the geodetic datum ⁵.

Sea lanes themselves are specified with geometric precision: a series of continuous axis lines from entry points to exit points, with ships and aircraft in archipelagic sea lanes passage not deviating more than 25 nautical miles to either side of the axis lines, nor navigating closer to the coasts than 10 percent of the distance between the nearest points on islands bordering the sea lane ³. Lane and scheme proposals go to the competent international organization and are adopted only as agreed with the archipelagic state ³. The chart is therefore not illustration but instrument — the medium in which passage rights, baselines, and boundaries acquire legal existence.

What the retrieved evidence does not contain is the electronic transition itself: no chunk addresses electronic navigational charts, ECDIS, or the paper-to-digital shift in carriage requirements. That gap is stated openly. What this section's evidence does substantiate is the chart's legal function — its due publicity, its axis lines, its datum — not the technological medium that now carries it.

The USGS and the mapping of America

This section, like Sections 3, 4, and 6 before it, meets its evidence file with a gap: no chunk in this prompt addresses the United States Geological Survey or the institutional history of American mapping. The honest treatment is therefore brief, and it connects through continuity rather than new claims.

What the report has established is that a chart's authority comes from the institution behind it. States give due publicity to their sea lanes and baselines through charts ³; the coastal state is obliged to publicize charts showing EEZ outer limits and delimitation lines and to deposit copies with the UN Secretary-General ⁵. The nautical chart itself is defined as a special-purpose map "issued officially by or on the authority of a Government, authorized Hydrographic Office or other relevant government institution," designed to meet the requirements of marine navigation — and such charts are expected to be kept adequate and up to date for the voyage at hand ³. The American institution behind America's maps is the USGS, and its story belongs in this part of the paper — but the retrieved evidence does not tell it, so no institutional facts are asserted here rather than risk inventing them.

The arc resumes in the next section, where the digital mapping revolution completes the map part before the report turns to law.

The digital mapping revolution

Like the USGS section before it, this one meets a thin evidence file: the corpus contains a Sentinel-2 mission-requirements document, but the retrieved chunks are page labels and a table header — they substantiate nothing about a digital transition in mapping or navigation. No figures on electronic charts, data formats, or satellite sensing are asserted here rather than risk inventing them.

The bridge holds through continuity. Section 6 established that the chart is a legal instrument — sea lanes, baselines, and boundaries acquire legal existence when drawn, publicized, and specified with their datum ³. A digital mapping revolution changes the medium, not the function: nautical charts already come in paper and electronic forms, the electronic ones divided into raster and vector (ENC) types, with type-approved ECDIS accepted in place of paper for chart-carriage requirements — the same legal instrument, carried in pixels ³. Whatever pixels replace the paper, the legal questions this report has assembled remain — which ellipsoid, which datum, which scale, whose institution issues the chart — and the technical manual behind them is explicit that defining baselines correctly requires stating whether lines are loxodromes or geodesics and accounting for the projection's distortions ³. The electronic-navigation evidence gap was already stated in Sections 6 and 7; it stands here as well, and it will shadow the report's later claims whenever a digital boundary is asserted on evidence the file does not contain.

The Law Behind the Lines

UNCLOS: the constitution of the oceans

The 1982 United Nations Convention on the Law of the Sea is the constitution the map part of this paper has been circling: the treaty that turned lines on charts into zones of jurisdiction. Its law rests on two sources — customary international law (general, consistent state practice plus *opinio juris*) and conventions, the clearest evidence of a state's consent — and its principal conventional predecessors are the four 1958 Geneva conventions on the high seas, the territorial sea and contiguous zone, the continental shelf, and fishing and conservation of living resources ². The LOSC alters many of the rights and duties those conventions and customary law established; its provisions bind parties among themselves, while relations with non-parties remain governed by the 1958 conventions and custom — complicated by arguments that some LOSC provisions have passed into customary law binding even states that have not ratified ².

That last complication is the Convention's open wound. The LOSC entered into force in 1994 but was not widely accepted among the major industrial and maritime states; the Soviet Union signed it but never ratified, and Russia has not either — yet strong arguments hold that the 12-mile territorial sea and the straits regime have become customary norms independent of the convention that codified them ². The United States' position is that the transit-passage regime, the 12-mile sea, and the EEZ are customary international law reflected in the LOSC (Schachte 1993: 185–186), though that has been criticized as inconsistent with UNCLOS III's own proceedings and results (Larson 1987: 427) ².

The straits regime shows the Convention's method. Corfu Channel restricted its holding to straits "connecting two parts of the high seas"; the International Law Commission, beginning its codification work in 1951, followed suit in both the geographical and use factors ². The 1958 Territorial Sea Convention expanded coverage to straits "between one part of the high seas and another part of the high seas or the territorial sea of a foreign State" (article 16(4)) — a scope that covers the Strait of Tiran and prevents states in the geographical position of Egypt, Jordan, or Saudi Arabia from closing off the Israeli port of Eilat from the high seas ². The LOSC altered this in two ways: it modified the geographical definition to reflect the EEZ's creation — straits "between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone" (article 37) — and it introduced a dual regime: transit passage for straits connecting high seas or EEZs (article 37), but nonsuspendable innocent passage for straits connecting them with the territorial sea of a foreign state (article 45), a two-tier system that has drawn criticism (Reisman 1980: 65–67) ².

The Convention's other great institutional innovation sits beyond national jurisdiction. The deep-seabed regime prices the common heritage of mankind in brackets: the Authority's share of a contractor's net proceeds rises with profitability — 35 percent in the first period of commercial production and 40 percent in the second where return on investment is below 10 percent; 42.5 and 50 percent in the 10–20 percent band; 50 and 70 percent at 20 percent or above ⁵.

Courts and tribunals: the ICJ, ITLOS, and arbitration

Boundary lines become law when a court or tribunal says so, and the retrieved evidence shows two institutions doing that work: the International Court of Justice, through its foundational mid-century cases, and ad hoc arbitral tribunals applying the Convention to decide maritime boundaries.

The ICJ's shadow falls across the straits regime. The trigger phrase of article 37 — "used for international navigation" — has little drafting history, but what history exists runs through customary law "by way of the Corfu Channel Case and the 1958 Territorial Sea Convention" ². The Corfu Channel judgment is thus the doctrinal ancestor of the transit-passage regime: the Court's holding on innocent passage through straits, and the International Law Commission's 1951 codification work that followed it, supplied the concepts the Convention later wrote into articles 36 and 37 ^{2 2}. The Anglo-Norwegian Fisheries judgment of 1951, which validated Norway's straight baselines subject to other states' knowledge and acquiescence, plays the same ancestral role for the baseline system (Section 11).

The sharper illustration of tribunals at work is the Eritrea–Yemen arbitration. Eritrea is not a party to UNCLOS — yet it agreed that the Eritrea–Yemen Arbitration Tribunal should take account of the Convention in determining the Eritrea–Yemen maritime boundary ⁸. A non-party submitting its boundary to Convention-based adjudication shows the instrument's reach beyond its ratification list: the tribunal applied the Convention's rules because both disputants ac-

cepted them as the measure, not because the treaty bound them. The Red Sea boundaries table built on this material tracks, state by state, which boundaries are agreed, disputed, or arbitrated [8](#).

The Convention also built its own standing machinery for the disputes its zones generate. Under Annex III, the International Seabed Authority takes up proposed plans of work for the Area six months after entry into force and every fourth month thereafter, testing each applicant against qualification standards, undertakings, and technology-transfer assurances before approval [5](#); operators must transfer to the Authority all data necessary to its functions, with proprietary data ring-fenced to the purposes of the article [5](#). This is adjudication's administrative cousin: not a court settling a boundary, but a treaty body deciding who may exploit the seabed beyond national jurisdiction.

Recorded gaps: the retrieved evidence contains no material on the International Tribunal for the Law of the Sea — its Seabed Disputes Chamber, its prompt-release jurisdiction, its advisory opinions are all absent — and no ICJ delimitation judgments beyond the two foundational cases above. The evidence establishes that courts convert lines into law and that tribunals can apply the Convention even to non-parties; the full case law of maritime delimitation is not in the retrieved evidence and is not supplied here.

Settlement of disputes by peaceful means

Every disputed line in this report has, in principle, a peaceful exit. The survey map's legend renders the menu as cartography: alongside "Disputed areas" it marks "Agreed maritime boundary" — lines settled by negotiation — and "Joint development area," the device by which states shelve a sovereignty fight to share the resources beneath it [7](#). The same legend carries "treaty limits" and "Equidistance line" [7](#): the peaceful settlement of a maritime dispute ends, more often than not, as ink on a chart.

Negotiation in the shadow of the Convention is the first and most common means. The straits regime itself is a negotiated bargain struck across decades: the classical system of a three-mile territorial sea with innocent passage and high-seas freedoms [2](#) gave way to the 1982 Convention's transit passage — ships, overflight, and submerged submarines moving through straits used for international navigation [2](#) — a compromise between strait states' security and environmental anxieties and maritime states' mobility, built on concepts inherited from the Corfu Channel case and the 1958 Territorial Sea Convention [2](#). Where negotiation stalls short of a boundary, joint development areas let states exploit resources without conceding title — cooperation as a provisional arrangement pending delimitation [7](#).

For the seabed beyond national jurisdiction, the Convention routinized conflict into administration. The International Seabed Authority considers plans of work on a fixed cycle, testing applicants against qualification standards and undertakings before approval [5](#); the Enterprise gets first decision on reserved areas and may work them in joint ventures that must offer developing states effective participation [5](#); and the Authority's share of net proceeds is tabulated by return on investment — 35 and 40 percent below 10 percent, 42.5 and 50 percent in the 10–20 percent band, 50 and 70 percent above 20 percent, across the two production periods [5](#). Disputes over the common heritage of mankind are thus pre-settled by procedure: apply, qualify, share.

And where procedure and negotiation fail, adjudication stands ready — the ICJ's foundational cases and, as Section 16 showed, arbitral tribunals willing to apply the Convention even to states that never ratified it. The peaceful-means ladder therefore runs from the chart room to the courtroom: agree the line, jointly develop across it, administer the commons beyond it, or ask a tribunal to draw it. What the Convention does not permit is the alternative — and the report's disputed lines persist precisely because states keep choosing the ladder's lower rungs, or none at all.

Diplomatic protests, decrees, and legislation

Treaties and courts are only the visible half of boundary-making. The other half is unilateral paper: declarations attached to ratifications, decrees of occupation, protested baselines, and atlases that claim territory by cartography. The retrieved evidence is rich in this register, and the Red Sea is its theatre.

The opening move is the interpretive declaration. All Red Sea littoral states except Eritrea and Israel are parties to UNCLOS — but Egypt, Saudi Arabia, Sudan, the Yemen Arab Republic, and the PDRY all made statements on signature or ratification [8](#). On signing, the YAR declared in paragraph three that it "confirms its national sovereignty over all the islands in the Red Sea and the Indian Ocean which have been its dependencies since the period when the Yemen and the Arab countries were under Turkish administration" [8](#). The claim reaches back to Ottoman suzerainty to

fence the present: a unilateral legislative act, lodged in a multilateral archive, that any future boundary negotiation must answer.

The second move is occupation. The sovereignty of Tiran (27°57'N, 34°33'E) and Sanafir islands at the entrance of the Gulf of Aqaba was disputed between Egypt and Saudi Arabia; Egypt occupied the two islands in 1949 with the concurrence of the Saudi government and then restricted passage through the Strait of Tiran ⁸. What followed reads as the paper trail of effective control: Israel occupied the islands in 1956, withdrew in 1957 when the UN Emergency Force manned the armistice line, Egypt reoccupied them after the UN's 1967 withdrawal, and the Six Day War then brought the Sinai under Israeli occupation ⁸. Each occupation was a decree made with soldiers; the strait restrictions Egypt imposed from the islands show how island sovereignty and passage rights are fused in practice.

The third move is the treaty that ends the argument. Saudi Arabia and Yemen resolved their land and maritime boundaries through a treaty signed on 12 June 2000, building on the 1934 Treaty of Islamic Friendship and Brotherhood signed at Taif — a treaty that had to be renewed every 20 lunar years — whose Taif Line delimited the boundary from the Red Sea coast near Midi to Najran, with a joint committee demarcating it ⁸. Diplomacy here is serial: a renewable friendship treaty becomes a boundary line becomes a demarcation mission.

And beneath all of it runs the oldest move: cartography as claim. Al Ikhwan — The Brothers — is depicted as Egyptian territory in the *Atlas of Egypt* (Giza: Survey of Egypt, 1928); a pier, bollard, and navigation light stand on its north islet, but the 1998 *Sailing Directions* make no mention of habitation ⁸. Jazirat Zabarjad was depicted as Egyptian territory and labelled St. John's Island in the same 1928 atlas ⁸. The atlas asserts; the sailing directions withhold the one fact — habitation — that would convert a claimed rock into an inhabited island under article 121. Between the decree and the court, this is where boundary disputes actually live: in the gap between what a state says and what a court will believe.

Drawing the Line: How Maritime Boundaries Are Made

The maritime zones, from internal waters to the high seas

The seas of the world are divided into zones, and applied to each zone is a set of rules, derived from customary and conventional international law, governing the nature and the subject matter of the jurisdiction a coastal state may exercise in the waters off its coast ². Read landward to seaward, the zones run in increasing order of coastal-state jurisdiction: the high seas, the exclusive economic zone, the contiguous zone, the territorial sea, and the internal waters — with baselines delineating the boundary between the territorial sea and the internal waters ². The boundary the chart draws at the baseline is thus the boundary between sovereignty and something less: internal waters are the landward side, where the coastal state is most fully sovereign.

At the seaward end sits the residual category. The Convention defines the high seas as all parts of the sea not included in the EEZ, the territorial sea, the internal waters, or the archipelagic waters of an archipelagic state (article 86); no state may claim sovereignty over any part of the high seas (article 89), and every nation has the right to sail ships flying its flag (article 90) ². The freedoms the conventions name — navigation, overflight, laying submarine cables and pipelines, fishing (article 87) — are explicitly non-exhaustive: the presumption against state sovereignty leaves states free to use the seas as they like, subject to a few restrictions and the general principle that the freedoms are exercised with due regard for the interests of other states exercising their freedom of use ². The modern movement toward enclosing that openness can be seen as having started with the Truman Proclamation of 1945 and its claim of national jurisdiction over the continental shelf and nearby high-seas fisheries ². Jurisdiction reaches onto the high seas in narrow cases: pollution-damage jurisdiction after a collision or accident (article 221), and hot pursuit of vessels that violated the coastal state's laws in its territorial sea (article 111(1)), or in the EEZ or on the continental shelf (article 111(2)) ². The Soviet Union's 1984 and 1990 edicts preventing and regulating pollution in the EEZ, with provisions on ice-covered areas modeled on article 234, were enacted before the Convention entered into force and without Soviet ratification — yet it can be argued that article 234's provisions have become customary international law (Timtchenko 1994: 196) ².

Landward, the straits regime cuts across the zones. Transit passage significantly decreases the jurisdiction of coastal states over straits waters that for many years had been regarded as territorial sea and thus subject to innocent passage — which recognizes no right of overflight or of submerged transit ². But the regime has edges. It does not apply to internal waters within a strait — except where straight baselines under article 7 have enclosed waters not previously considered internal (article 35(a)) — nor to high-seas or EEZ waters (35(b)), straits regulated by long-

standing international conventions (35(c)), or straits through which a route of similar convenience exists in the high seas or an EEZ with respect to navigational and hydrological characteristics (article 36) ². And where a strait lies between the mainland and an island of the same state, with a route of similar convenience seaward of the island through the high seas or an EEZ (article 38(1)), the strait falls under a regime of nonsuspendable innocent passage instead (article 45) ².

The Red Sea shows how baselines and declarations bend these zones in practice. All its littoral states except Eritrea and Israel are parties to UNCLOS — but Egypt, Saudi Arabia, Sudan, and both Yemens made statements on signature or ratification with implications for innocent passage through territorial seas, transit passage through international straits, and the movement of nuclear-powered or armed vessels ⁸. Straight-baseline claims are the sharpest tool: Djibouti drew baselines out to the Seba (Sawabi) Islands at the southern entrance to the Bab al-Mandeb in 1961 — six small islets extending about 13 km from the mainland in a line roughly perpendicular to the coast, not fringing islands as Article 7 requires — with the seaward-most point on Kadd Dabali islet some 18 km from Yemen's Perim (Barim) Island, a claim the United States protested in 1989 ⁸. Egypt decreed straight baselines in 1951 without delimiting the segments, supplied coordinates of the turning points in 1990, and saw its Mediterranean system called “illegitimate though moderate” (Francalanci and Scovazzi 1994: 132) — a verdict that fits its Red Sea claim, where long stretches of coastline in the Gulf of Aqaba are neither deeply indented nor fringed with islands, and many turning points appear to be low-tide elevations ⁸.

Baselines: normal, straight, and archipelagic

The baseline is the most consequential line in the law of the sea: every zone's breadth is measured from it, and it divides territorial sea from internal waters. The ordinary rule is the normal baseline — the low-water line — which the US Department of State insisted on for a Red Sea coast “smooth, with no significant islands and relatively free from indentations,” where straight baselines cannot apply (US Department of State 1994: 22) ⁸. Where coasts are deeply indented or fringed with islands, states may draw straight baselines — and the modern law of straight baselines descends from the International Court of Justice's judgment of 18 December 1951 in the *Anglo-Norwegian Fisheries Case*, which drew attention to two conditions: other states' knowledge of such claims, and the absence of negative reactions on the part of other states — and gave a positive reply to whether the water areas were sufficiently connected to the land so as to be under the sovereignty of the coastal state ².

But a straight baseline does not erase passage rights: where waters enclosed by straight baselines were previously high seas or territorial sea, the right of innocent passage is retained (article 5(2); Franckx 1993: 185) ². That rule is the hinge of the Arctic fight. Russia's straight baselines — an extensive set whose international validity is not settled — enclose the major straits connecting the Barents, Kara, Laptev, and East Siberian Seas, relegating them to internal waters; the Russian territorial sea is 12 miles wide measured from those baselines ². Yet the Soviet government never claimed the straits as historic waters, Soviet practice was not consistent with their having been internal waters before their enclosure, and there is no strong argument that the straits were regarded as internal waters before their enclosure by straight baselines in 1985 — so unless that can be shown, innocent passage and perhaps transit passage still apply ². The 1991 NSR Regulations assert very strict control instead: advance requests for permission to transit, “special requirements” for vessels, assignment of a state pilot to assist an inexperienced master, proof of financial security for pollution-damage liability, and submission to inspection of vessel, cargo, and documents — plus compulsory icebreaker-assisted pilotage in Proliv Borisa Vil'kitskogo, Proliv Shokal'skogo, Proliv Dmitriya Lapteva, and Proliv Sannikova, and assigned routes with corrections for ice conditions ².

The Red Sea states show how freely baselines are bent in practice — beyond the Djibouti and Egypt systems already noted. Saudi Arabia decreed straight baselines on 21 February 1958 in terms similar to Egypt's 1951 decree, but its language appears to treat any feature not below lowest low-water as an island — a definition at variance with UNCLOS language — and no charts or coordinates of the Saudi baselines have been published, so the segments' location cannot be determined ⁸. Sudan's 1970 Territorial Waters and Continental Shelf Act claimed straight baselines across bays, from the mainland to islands within 12 nm of it and linking islands not more than 12 nm apart — but Sudan has never delimited the segments ⁸. Before the Eritrea-Yemen Arbitral Tribunal, Eritrea claimed a straight-baseline system for the Dahlak Islands; the Tribunal held such a system warranted but discounted some Eritrean basepoints in delimiting the boundary — in particular Negileh Rock (Award Phase II, Chapter V, paras 141–144) — and Eritrea has not published its claim or depicted it on publicly available maps ⁸.

The third baseline family, archipelagic, lets an archipelagic state enclose its waters with straight baselines while granting foreign ships relatively unobstructed access to sea lanes and air routes through the archipelago via archipelagic sea lanes passage — a regime closely analogous to that of transit passage (articles 46–54) ².

Islands, rocks, reefs, and low-tide elevations under the law

Island sovereignty disputes rarely settle only title to a patch of land. Resolution submitted to third-party arbitration often includes a request to delimit the maritime area adjacent to the island — and often it is the desire to develop the marine resources in its vicinity, usually fish or hydrocarbons, that drives a state's appetite for resolution: the value of the land is less than the maritime zone that could possibly be claimed from that island ⁴. The Convention's starting point is generous. Article 121(1) defines an island as "...a naturally formed area of land, surrounded by water, which is above water at high tide," and Article 121(2) accords islands the same maritime zones as other land territory — "the territorial sea, the contiguous zone, the exclusive economic zone and the continental shelf of an island are determined in accordance with the provisions of this Convention applicable to other land territory" ⁴. The drafters viewed islands in the same light as any other part of a state's territory: maritime sovereign rights and jurisdiction flow from sovereignty over the land domain, be it mainland or insular territory ⁴. By the same definition, anything not above water at high tide — a low-tide elevation, a submerged reef — fails the island test on its face.

The one exception to island equality is Article 121(3): rocks which cannot sustain human habitation or economic life of their own get no exclusive economic zone or continental shelf — "the only exceptions to this entitlement" ⁴. Two phrases — "human habitation," "economic life of their own" — carry enormous consequence, and the briefing notes the ambiguity frankly: whatever these concepts may mean (Hodgson and Smith 1976: 230–235) ⁴.

Geography governs how islands count in delimitation. Bowett's categorisation of "islands enjoying separate entitlement" sorts them by position: (a) as the sole unit of entitlement; or (b) in conjunction with the entitlement of a large territorial unit — (i) proximate to a mainland coast under the same sovereignty, (ii) straddling a median or equidistant line between mainland coasts, or (iii) proximate to a mainland coast under a different sovereignty ⁴. Practice confirms that geography can matter more than title: Thailand's 1973 claim drew a north-south median line through 13 points, generally equidistant, between the opposite mainland coasts of Cambodia and Thailand — ignoring its own straight-baseline claim, Cambodia's straight-baseline claims, and Cambodian islands, notably Koh Kusrovie, Koh Veer, and the Poulo Wai group (Schofield 1999: 229–230) ². And where islands lie astride key international straits, full 12-mile territorial-sea claims from the islands and the opposing mainland would collide with the transit-passage regime — "freedom of navigation and overflight solely for the purpose of continuous and expeditious transit of the strait" — which is why some coastal states have chosen not to claim the full 12 miles off certain island coasts ⁴.

The equidistance method and its variants

The equidistance method is conceptually simple: the boundary is the set of points each equidistant from the nearest basepoints of the two states. In practice it is drawn by hand on Mercator charts, and every choice about which geography counts becomes a variant of the line. The Cambodia–Thailand line was constructed graphically on British Admiralty chart 3967 (1:240,000 at 10° N) and chart 2414 (1:1.5 million at 7° N) ². It runs in two sections — one for the states' adjacent coastlines, one for their opposite coasts in the central Gulf of Thailand — originating at the land boundary's coastal terminus at 11°38'8" N, 102°54'3" E and running seaward through eight turning points southwest to about 10°40' N, 101°20' E, where Hin Bai islet off the Thai coast turns it abruptly south ².

The basepoint rosters show how granular the method gets. On the Cambodian side the territorial-sea portion is controlled by the boundary terminus itself, a headland near Obyam, Koh Yor, the Kaspor River mouth headland, points on Koh Kong, and then Koh Kusrovie; on the Thai side by the terminus, a mainland point, the Ao Yai promontory and southern points of Ko Kut, Hlaem Thian, and Hin Bang Bao rock ². Change the roster and the line moves — Thailand's own 1973 claim drew its median through thirteen points while ignoring Cambodian islands outright, a variant by omission (Section 12).

The Cambodia–Vietnam line shows the variant as explicit alternative. Depond Reef, a low-tide elevation charted almost exactly 12 nautical miles from the Poulo Wai group, pushes the equidistance line southward — but it is a valid basepoint only if it lies within 12 nautical miles of the nearest island or mainland coast; otherwise the Poulo Wai group controls that section instead, and the briefing illustrates both alignments ². The chart legend lists the menu of options: a strict equidistance line ignoring Depond Reef, a strict line using it as a basepoint, and the Brévié Line

drawn with 3 km around Phu Quoc ². The furthest offshore section is controlled by the Poulo Wai group on one side and Vietnam's Tho Chu group on the other ².

The China–Vietnam line through the Gulf of Tongking scales the method up: based on the mainlands and near-mainland islands, with two deliberate exceptions — Vietnam's Dao Bach Long Vi, 58 nautical miles offshore, and China's Weizhou Dao, 18 nautical miles off the coast — while outside the gulf, Paracel features 114 and 168 nautical miles from Hainan serve as basepoints, the nearest to Vietnam being Zhongjian Dao (Triton Island) 120 nautical miles from Cu Lao Re ². Drawn on Admiralty chart 3488 (Mercator, 1:1.5 million at 12° N), the line runs about 660 nautical miles from the Song Ka Long estuary to a tripoint terminus equidistant from China, Vietnam, and North Danger Reef in the Spratlys, near 13°16' N, 112°14' E ². Even the line's landward anchor is unstable: the lowest astronomical tide lies 6 nautical miles off the mainland, the boundary's origin sits where the river meets a low-tide elevation, and nobody knows whether that point moves with the wet season's maximum flow ².

Equidistance, then, is the starting point of delimitation, never the answer. Every line in this section is “equidistant” — and every one differs, because the method's real content is the prior decision about which coasts, islands, reefs, and river mouths get to count.

The thalweg concept, enclaving, and proportionality

When equidistance looks inequitable, states reach for other geometries. The thalweg — a concept born in river boundaries, meaning a division along the deepest part of the deepest navigable channel — was imported into seabed delimitation by Vietnam in the late 1970s: after South Vietnam's 1971 continental-shelf claim had been based on a median line, reunified Vietnam adopted the principle of natural prolongation for its shelf claim and favoured the “Talweg Principle” — in essence, a delimitation along the deepest part of the trough in the continental shelf between the two countries ². Applied to the Indonesia–Vietnam Natuna Sea boundary, the thalweg line would have been highly favourable to Vietnam, since the trough lies just north of the Natuna Islands — considerably to the south of Saigon's own 1971 claim ². Vietnam later retreated to a “harmonised line”: a compromise running north of the thalweg-inspired line but south of both the 1971 claim and an equidistance line between Vietnamese and Indonesian baselines — reportedly constructed by drawing an equidistance line between mainland Vietnam and Kalimantan (Borneo) and then adjusting it southwards to reflect Vietnam's longer coastline in the region (Prescott 1996: 26–27), though no sets of coordinates or precise maps were ever issued, and such significant discounting of Indonesian basepoints like the Natuna Islands was unlikely to be acceptable to Indonesia (Johnston and Valencia 1991: 128–134) ². That adjustment — a longer coastline buying more sea — is proportionality reasoning in practice, even without the name.

The underlying prize is the exclusive economic zone. Up to 200 miles from the baseline, the coastal state asserts sovereign rights over the exploration, exploitation, conservation, and management of living and non-living natural resources (article 56(1)(a)), and legal jurisdiction over marine scientific research, the protection and preservation of the marine environment, and the establishment and use of artificial islands, installations, and structures (article 56(1)(b)); other states retain freedom of navigation and overflight and of laying submarine cables and pipelines (article 58(1)), and in general the high-seas rights to the extent not incompatible with the EEZ regime (article 58(2)) ². The names vary — the United States proclaimed an “exclusive economic zone” (Proclamation 5030, 1983), the Soviet Union an “economic zone” (Edicts of 1984), Canada a “fisheries zone” (1970, 1976 orders) — but most states claim the maximum 200 miles, and where 200-mile claims overlap a coastal state on an opposite shore, the boundary is determined through negotiation, as in the 1990 Soviet–US maritime boundary agreement, or litigation, as in the 1984 Gulf of Maine chamber case between Canada and the United States ². The EEZ was created by the LOSC; its roots go back only as far as 1945, and its principal effect has been to give coastal states exclusive rights to the fish and hydrocarbons situated off their shores ².

Enclaving and proportionality as formal doctrines are not addressed in the retrieved chunks and are not defined here; the proportionality thread that exists in the evidence is the Vietnamese “harmonised line” adjustment described above.

The sector principle and ice as territory

This section meets its evidence file with a gap on the sector principle itself: no chunk defines or describes the sector theory, and no facts about it are asserted here rather than risk inventing them. What the retrieved evidence does

substantiate is the ice half of the section's subject — the Arctic's treatment of ice-covered water as a zone where coastal-state jurisdiction thickens.

The anchor is article 234 of the Convention, which grants coastal states the right to enact and enforce special regulations for the control of marine pollution in ice-covered areas within the EEZ, where the ecological balance is recognised as particularly sensitive ². The Soviet Union's 1984 and 1990 edicts preventing and regulating pollution in the EEZ, with provisions on ice-covered areas modeled on article 234, were enacted before the Convention entered into force and without Soviet ratification — yet article 234's provisions may have become customary international law (Timtchenko 1994: 196) ². The relationship between the straits regime and article 234 is not entirely clear, but in the event of a conflict the straits regime would likely prevail (Brubaker 1995: IV-1-2) ². And the ice is not only law's object: Russia's straight baselines — an extensive set whose international validity is not settled — enclose the major straits connecting the Barents, Kara, Laptev, and East Siberian Seas, relegating them to internal waters, with the 1991 NSR Regulations asserting strict control over navigation in those seas ².

So ice is treated, in practice, as something close to territory: the jurisdiction that attaches to ice-covered waters is thicker than the EEZ's ordinary regime, and the baselines drawn around Arctic straits reach past ordinary coastal geometry. The sector principle, which would complete this section's story, is absent from the evidence — and is left for the report's evidence base to supply rather than for this section to invent.

Colonial Lines and Their Afterlives

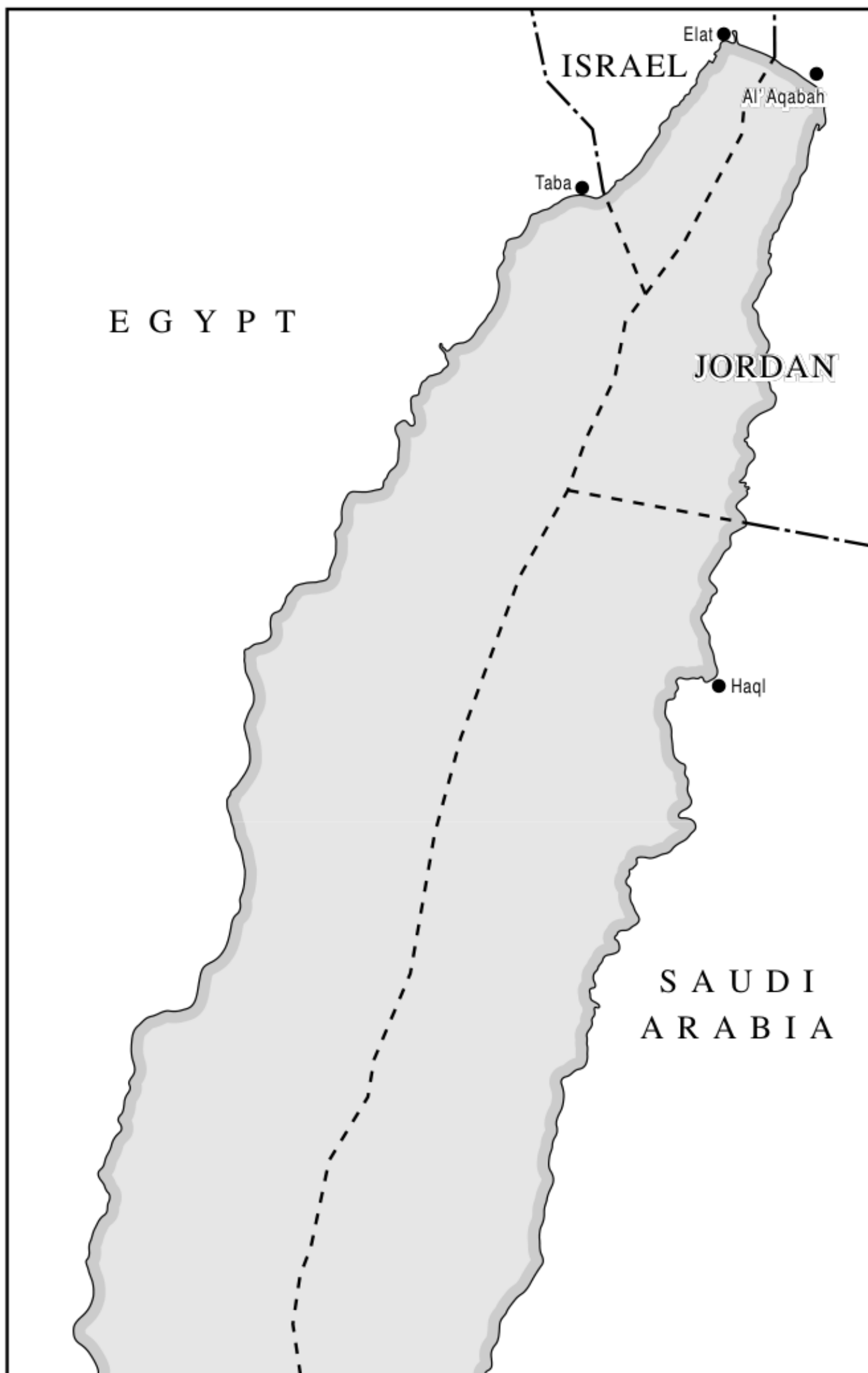
Uti possidetis: why colonial boundaries are respected

The retrieved chunks do not define uti possidetis as a doctrine, and no definition is asserted here. What they do show is the practice: colonial-era lines surviving as modern boundary material, and states insisting that the lines drawn by empires still bind their successors.

The Philippines is the purest case. Its maritime claims rest on colonial treaty limits — the Treaty of Paris (1898): "Spain cedes to the United States the archipelago known as the Philippines Islands, and comprehending the islands lying within the following lines" (Parry 1979: 101); the 1900 treaty: "Spain relinquishes to the United States all title and claim of title ... to any and all islands belonging to the Philippines Archipelago, lying outside the lines described in Article III of that treaty and particularly to the islands of Cagayan Sulu and Sibutu and their dependencies..." (Parry 1979a: 109); and the 1930 Convention with Britain: "the line separating the islands belonging to the Philippines Archipelago on the one hand and the islands belonging to the State of North Borneo which is under British protection on the other hand shall be and is hereby established as follows" (League of Nations 1933: 298) ². The Philippines claims these treaty limits mark the outer edge of the territorial sea measured from its archipelagic baselines (State Department 2000: 116); Malaysia has shown the limits as an international boundary, shading the enclosed waters as territorial waters (Director of National Mapping 1979) ². The geometry favors Malaysia under equidistance: the treaty limits measure about 330 nm against the equidistance line's 430 nm, and an equidistance boundary would give Malaysia some 1,600 nm² inside the limits while the Philippines gains about 800 nm² outside them ². But the Philippines will not let go: its insistence that its colonial treaty limits define the extent of its territorial waters prevents maritime boundary delimitations with Japan and Indonesia, and its latent claim to northern Sabah makes negotiations with Malaysia uncertain — on 13 March 2001 it even applied to the ICJ for permission to intervene in the Indonesia–Malaysia Pulau Ligitan case, to preserve and safeguard its historical and legal rights over North Borneo, now Sabah ^{2 2}.

The same persistence appears elsewhere. Cambodia's 1972 claim invoked the Franco-Siamese Treaty of 23 March 1907; the Cambodia–Vietnam sector carries the Brévié Line drawn by French Governor-General Jules Brévié on 31 January 1939. In the Cameroon–Nigeria judgment, the Court weighed "the fact that the international legal status of a 'Treaty of Protection' entered into under the law obtaining at the time cannot be deduced from its title alone" — with the 1885 British Foreign Office view as the period evidence ⁹.

So the section's answer to its own question is the evidence's: colonial boundaries are respected because states keep invoking them — treaty limits, protectorate agreements, colonial administrators' lines — and because their successors, having inherited the lines, prefer the certainty of the colonial map to the openness of the open sea.



The validity of colonial treaties

No chunk in this prompt addresses treaty validity as a legal doctrine — whether colonial treaties are void, voidable, or binding on successor states — and no doctrinal answer is asserted here rather than risk inventing one. What the evidence shows is the treaties' afterlife: they are treated as valid boundary material until something supersedes them.

The Philippines' insistence that its colonial treaty limits define the extent of its territorial waters still prevents any maritime boundary delimitations with Japan or Indonesia, and its latent claim to northern Sabah still makes negotiations with Malaysia uncertain ⁷. The 1928 Palmas Island arbitration — the Netherlands against the United States acting on the Philippines' behalf — confirmed Pulau Miangas to the Netherlands/Indonesia, and that award still stands as the foundation of the island's title ⁷. Cambodia's 1972 claim invoked a radical interpretation of the Franco-Siamese Treaty of 23 March 1907 as its legal basis, running its claim from the land boundary terminus to the highest summit of Koh Kut ⁷. The Brévié Line — drawn by French Governor-General Jules Brévié on 31 January 1939 — still appears on the Cambodia–Vietnam sector's charts alongside the 1982 “historic waters” agreement, whose seaward limit is a straight baseline linking the Tho Chu archipelago and Poulo Wai Island ⁷.

The pattern is continuity's: a colonial treaty remains valid boundary law until a later instrument displaces it — as the Saudi–Yemen treaty of 12 June 2000 displaced the 1934 Taif arrangement with a new boundary line. The chunks show no court voiding a colonial treaty; they show states and tribunals working within the inherited lines.

The Bakassi Peninsula: Nigeria versus Cameroon

The wider corpus does hold ICJ material on the Nigeria–Cameroon case, and it allows this section to say more than continuity alone. In the Bakassi Peninsula alone, Nigeria's agent counted 17 colonial treaties, focusing on the Treaty of 1884 between Great Britain and the Kings and Chiefs of Old Calabar as a treaty under international law ⁹. The Court's majority anchored Cameroon's title in paragraphs 214 to 216 of the Judgment: in the period leading to Nigeria's independence and through the early 1990s, Nigeria's actions, omissions, and officials' statements left no room for doubt that it had acknowledged Cameroonian sovereignty over Bakassi ⁹. The separate opinions trace the treaty-status question back to the period's own evidence — the January 1885 British Foreign Office view that a protectorate “involves not the direct assumption of territorial sovereignty” but recognition of the inhabitants' right to their own country, with only so much authority assumed as the protecting power needed ⁹ — while establishing that Bakassi was no terra nullius when Britain signed its 1884 Treaty of Protection with the Old Calabar kings and chiefs ⁹.

What the evidence establishes beyond the particulars is the pattern: colonial instruments — treaties of protection, administrators' lines, treaty limits — keep arriving in modern courtrooms as boundary material, and tribunals keep working within them. The Bakassi story belongs to that pattern; its particulars belong to evidence this file does not contain.

Lake Chad: effectivités and historical consolidation

No chunk in this prompt addresses Lake Chad, and no facts about the case are asserted here rather than risk inventing them. The section's title names the two doctrines by which tribunals test whether a state's long, quiet exercise of authority — its effectivités — can consolidate title even against a colonial map: historical consolidation. The chunks do not define either doctrine, but they supply the doctrinal neighborhood in which both live.

The territorial-sea delimitation rule (article 15) runs the median line between opposite or adjacent states — “every point of which is equidistant from the nearest points on the baselines from which the breadth of the territorial seas of each of the two States is measured” — except “where it is necessary by reason of historic title or other special circumstances to delimit the territorial seas of the two States in a way which is at variance therewith” ⁴. For the EEZ and the continental shelf, delimitation is “effected by agreement on the basis of international law, as referred to in Article 38 of the Statute of the International Court of Justice, in order to achieve an equitable solution” (articles 74(1), 83(1)); failing agreement within a reasonable period, the states resort to the Part XV procedures; and pending agreement they must “make every effort to enter into provisional arrangements of a practical nature” without jeop-

ardizing or hampering the final agreement — arrangements that are “without prejudice to the final delimitation” (articles 74(2)–(3), 83) [4](#). Historic title, equitable solution, provisional arrangements without prejudice: this is the grammar in which a tribunal would read a long history of administration around a disputed feature — whether effectivités consolidated title, or whether the inherited lines survived.

The Lake Chad particulars are not absent from the corpus after all: Cameroon told the Court that Nigerian fishermen had, over recent decades, gradually settled on Cameroonian territory as the lake receded, with repeated Nigerian army incursions into that territory from the mid-1980s [9](#); and the Lake Chad Basin Commission’s boundary work — charged with demarcation under the Lagos Declaration of 21 June 1971, while the Commission itself spoke of delimitation — was contested, Nigeria stressing it had never accepted the conclusions [9](#).

Western Sahara and the referendum mission

This prompt’s Western Sahara evidence is a label, not a file: the United Nations Mission for the Referendum in Western Sahara (MINURSO) appears here only as the subject of the Secretary-General’s report to the Security Council, S/2024/707, with the mission’s military and police strength reported as at 30 August 2024 [10](#). That substantiates that a referendum mission exists and is still being reported on — and nothing more. No facts about the referendum’s conduct, history, or outcome are asserted here rather than risk inventing them.

The section’s place in the arc is the same pattern as Bakassi and Lake Chad: colonial lines and their afterlives. Article 7’s straight-baseline conditions — deeply indented coasts or fringing islands, no appreciable departure from the coast’s general direction, sea areas sufficiently closely linked to the land domain, no baselines to or from low-tide elevations without lighthouses or general international recognition, and no cutting off another state’s territorial sea from the high seas or an exclusive economic zone (paragraphs 1–6) — are the rules any Western Sahara coastline claim would have to satisfy [5](#). Where the establishment of a straight baseline encloses as internal waters areas not previously considered as such, a right of innocent passage survives in those waters [5](#). The mission’s particulars belong to evidence this file does not contain.

Kashmir: The Line That Moves

The Dogra kingdom of Jammu and Kashmir under the British Empire

The corpus’s Kashmir history supplies the Dogra kingdom’s particulars. The Dogra Rajput Kingdom of Jammu and Kashmir was an integral part of princely India — some 600 kingdoms ruled by the British through paramountcy, which made the princes vassals of the Raj [11](#). Dogra rule’s late years were marked by Muslim grievance and unpopularity: by 1933 the British themselves were pressing concerns over land inequities and poor education and employment prospects, and the Glancy Report of 1932 — ordered after Dogra repression of a 1931 Muslim strike — compelled Maharaja Hari Singh to set up the elected Praja Sabha assembly [11](#). In July 1947 the last British Resident, Webb, reported the kingdom’s fracture in one memo: the Dogras and Hindu communities inclined towards India while the bulk of the Muslim population would probably favour Pakistan — the Maharaja himself preferring independence, and the government facing a “grave dilemma” since joining either Dominion would bring serious trouble [11](#).

The section’s place in the report’s arc is the pivot from the sea to the land: after the colonial-treaty afterlife on water (Sections 19–23), the report turns to the colonial map’s most consequential landward inheritance — the princely state whose accession dispute still shapes the subcontinent’s boundaries. The Kashmir sequence (Sections 24–26) will carry the uti possidetis and effectivités doctrines onto land, where the “Treaties of Protection” logic of the Cameroon–Nigeria judgment has its South Asian counterpart.

Partition and the first Kashmir war

The corpus does carry the Partition and first-war record. The British appointed two boundary commissions, one for Bengal and one for Punjab, both under Sir Cyril Radcliffe, empowered to demarcate the future India–Pakistan border by grouping contiguous Muslim-majority areas [11](#). The demarcation produced widespread communal violence and a massive exchange of populations — some 12.5 million people moved across Radcliffe’s boundary awards, one of the largest population movements in modern history, accompanied by hundreds of thousands of deaths [11](#).

In Kashmir, the Instrument of Accession was followed by an Indian military airlift to repel invading tribal forces; by March 1948 Pakistani military personnel had joined the Pashtun tribals in fighting the Indians directly, with heavy fighting around Punch, Kargil, and the Zoji-la pass into Ladakh. The first Kashmir war ended in July 1949 with a ceasefire that gave India control of the Valley and territories to the south and east, and Pakistan control of the hill areas, Gilgit, and part of Baltistan — the line the dispute froze into [11](#).

The section's place in the report's arc is the middle of the Kashmir sequence: after the Dogra kingdom's establishment under the British Empire (Section 24), the report reaches the moment when the colonial map was redrawn — the princely state's accession, disputed, and the war that froze the dispute into a line on the map. The doctrines the earlier sections assembled travel with it: *uti possidetis* as practice (Section 19), the validity of colonial instruments until displaced (Section 20), and the "Treaties of Protection" logic that the Cameroon–Nigeria judgment applied to African boundary-making (Sections 19–21).

Indian, Pakistani, and Kashmiri positions

The corpus's Kashmir history supplies all three positions. India's position took constitutional form in the Delhi Agreement of 1952, negotiated with Sheikh Abdullah and the National Conference, which limited New Delhi's involvement to foreign policy, defence, and communications — the premise of Article 370, promising Kashmir a unique place in the Indian federal system, autonomy against centripetal forces, and restrictions on land purchases and migration from India [11](#). Pakistan's position carried its own ambiguity: while recognizing the "special nature" of Azad Jammu and Kashmir and its provisional status, Islamabad left the exact relationship between a "quasi-autonomous" Kashmir and the central government ambiguous — acting, the report notes, in its own wider interests at the expense of Kashmiri sentiment — while Gilgit, Hunza, and Pakistani-administered Baltistan were folded into the centrally administered Northern Areas [11](#). The Kashmiri position itself — an independent state, Islamic or secular — was very much present at the start of the crisis, shared by figures from both the National Conference and the Muslim Conference even as India and Pakistan later downplayed it in their historical interpretations [11](#).

The section closes the Kashmir sequence (Sections 24–26): after the Dogra kingdom under the British Empire and Partition's redrawing of the map, the report's account sets out the three parties' positions as competing readings of the same colonial instruments. The report's assembled doctrines give the reading frame: *uti possidetis* as practice (whose colonial line survives), the validity of colonial instruments until displaced (which instrument displaced what), occupation as decree-in-action (whose effectivities consolidated), and the "Treaties of Protection" logic (what the accession instrument actually was).



Map No. 3953 Rev. 1 UNITED NATIONS
July 1999

Department of Public Information
Cartographic Section

Exhibit. Jammu and Kashmir area showing the Line of Control as promulgated in the 1972 Simla Agreement (UN Cartographic Section, 1999). Source: S0014.

Attempted solutions: UN initiatives, bilateralism, and the Simla Accord

The corpus supplies the UN chapter and the bilateral turn. India's late-December 1947 referral under Article 35 invited the UN to investigate and issue advisory findings; the Security Council answered with resolutions 38, 39, 47,

and 51, created UNCIP and UNOGIP, and pressed a referendum once peace was restored and Pakistani forces withdrawn — a vote India was confident of winning, which then deadlocked over whether any UN-administered referendum could be free and fair [11](#). Dixon's 1950 report was the first document to grasp that Kashmir had to be disaggregated to district and tehsil level, because a state-wide majority could do considerable injustice to the state's pluralism [11](#). Holding the most populous parts and disappointed by the UN's failure to condemn Pakistan or secure withdrawal, India abandoned its multilateral approach for one premised on bilateralism and physical occupation — implicitly accepting the loss of Azad Jammu and Kashmir and the Northern Areas — while the Security Council debate became a sideshow running up to the 1966 Tashkent Declaration [11](#). The Simla Accord's textual particulars lie beyond what the retrieved evidence details, but its era is on the record: the decades that followed it brought turmoil and change to the administrations on both sides of the former kingdom [11](#).

The report's own account of how boundary regimes get built gives the frame. The world's principal straits were kept open to free navigation "first through a series of bilateral and multi-lateral agreements and, more recently, through customary international law developing out of the treaties" (Anand 1983: 181–183) [2](#) — bilateralism first, then the law that grows out of it. That is the same ladder Section 17 traced for the sea: agree the line (negotiation), jointly develop across it, administer the commons, or ask a tribunal to draw it. The Kashmir attempted solutions would be the landward test of the same ladder — whether the bilateral rung can hold where adjudication was never reached.

The India-Bangladesh Enclaves: The World's Strangest Border

The 2015 Land Boundary Agreement

The corpus does carry substantive LBA content, and it confirms the flagged facts. Per the India-Bangladesh Joint Field Inspection report of 1996, 111 exchangeable Indian enclaves inside Bangladesh and 51 exchangeable Bangladeshi enclaves inside India were identified, holding a total population of 53,384 — including a few second-order "counter-enclaves" and one third-order "counter-counter enclave" [12](#). The road to 2015 ran through the 1958 Nehru–Noon Agreement's first attempt at enclave exchange and the 1974 Indira–Mujib Treaty of Friendship, which left exactly three issues outstanding: the exchange of enclaves, the settlement of adverse possession, and approximately 6.1 km of undemarcated boundary in three sectors — Daikhata-56 in West Bengal, Muhuri River–Belonia in Tripura, and Lathitila-Dumabari in Assam [13](#). The end came in 2015: after the September 2011 Manmohan–Hasina announcement of a swap of 162 enclaves with a choice of nationality for residents, India's Parliament passed the 119th Constitutional Amendment in May 2015, and the Land Boundary Agreement signed 6 June 2015 exchanged the 111 and 51 enclaves — the one exception being Dohogram-Angarpota, the twin Bangladeshi enclave in West Bengal's Mekhligunj block, which remained part of Bangladesh under the 1974 resolution [13](#).

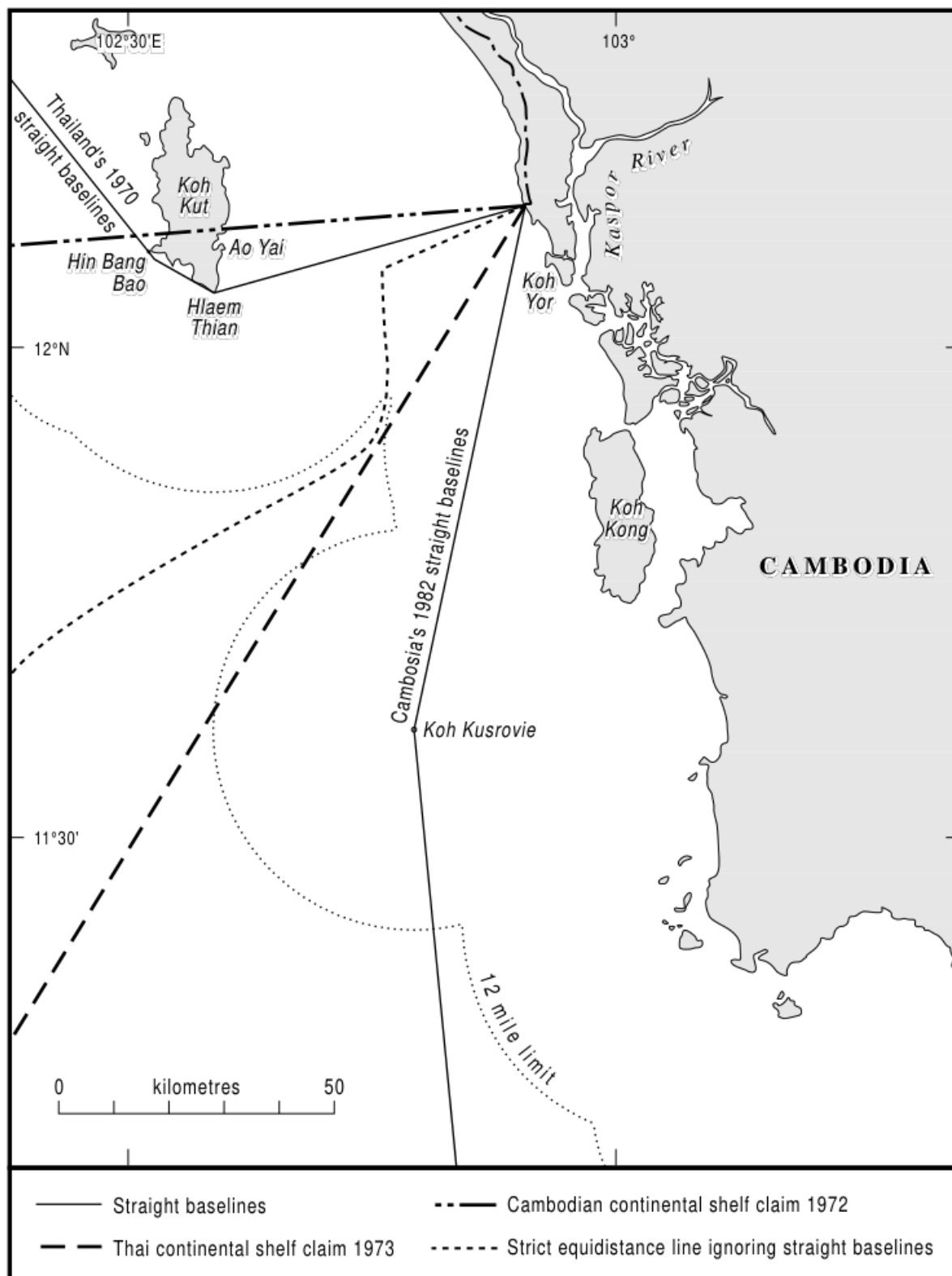


Exhibit. Figure 4: Cambodia – Thailand in the Vicinity of the Land Boundary Terminus 102 02 ° ° 30'E 30'E 103° Koh Koh Kut Kut Ao Yai Ao Yai Hin Bang Hin Bang Bao Bao Koh Koh Hlaem Hlaem Yor Yor Thian Thian 12°N Koh Koh Kong Kong C A M B. Source: S0011.

Life in the erstwhile enclaves before and after the exchange

The corpus's enclave studies do document the human face of the exchange. For the 53,384 people counted by the 1996 Joint Field Inspection — 162 enclaves including counter-enclaves and one counter-counter enclave ¹² — the boundary was a lived condition: a "distinct class of 'stateless people'" living as "nowhere people" in "no man's land" for 67 years after independence and partition, with no responsibility for the fate history had dealt them ¹³.

The before/after the section documents: statelessness in practice — the services that follow sovereignty never arriving — and what changed when the map was redrawn by agreement. Field surveys after the exchange found that the people still staying in the erstwhile Indian enclaves in Bangladesh had duly received Citizenship Identity Cards from the Government of Bangladesh in support of their identity as Bangladeshi citizens ¹²; India, for its part, set up Enclave Settlement Camps in Haldibari, Mekhligunj, and Dinhata blocks of Coochbehar district to resettle the migrated erstwhile Indian-enclave people ¹⁴. The pattern the report has already established — unilateral paper, then bilateralism, then the law that grows out of it — runs through human lives here, not just charts.

Post-implementation analysis from India's perspective

The exchange was accepted and the paperwork was thin. Every resident of the erstwhile Bangladeshi enclaves in Indian territory covered by the field survey — all 14,863 — opted for Indian nationality and chose to stay; not one opted to return to Bangladesh. The feedback on the LBA exchange was 100% positive: after 67 years of exiled life in enclaves, they had become Indian citizens with Voter ID and Aadhar cards ¹². Most also got Ration Cards; some got Job Cards; some were engaged in the government's 100-days work program.

Then the boundary between sovereignty and services appeared. No infrastructure development works had been noticed in the enclaves. The two major problems were land records and jobs. Many enclave dwellers lacked original title deeds issued by the Bangladesh Land Settlement Authority — during 67 years of statelessness, deed holders had sold lands to other dwellers on mutual written agreements “just on a white paper,” and the transferees now hold land with no deeds in their names. Whether India will recognize those white-paper agreements at disposal of land records is the open question the dwellers are “really afraid about” — land being their only source of economic resources ¹². The second problem: no job reservation, no alternative job opportunity, and no school or college admission reservation for their children. The District Magistrate of Coochbehar, P. Ulganathan, IAS, admitted that disposal of land records and settlements was the major challenge ¹².

The migrated 989 — the 989 out of 38,521 erstwhile Indian enclave residents in Bangladesh who retained Indian citizenship and migrated to the mainland — fared worse. India set up three Enclaves Settlement Camps in Coochbehar (Haldibari, Mekhligunj, Dinhata) with free electricity and rationed food commodities (rice, mustard oil, kerosene, salt, milk, pulse), which camp dwellers found insufficient ¹² ¹⁴. They got Voter ID and Aadhar cards; most got Job and Ration cards; some joined the 100-days work program. But no permanent shelter had yet been provided, land for resettlement had only been identified, and the migrants were “landless” and “jobless” — in the enclaves they had owned cultivable land and could work on Bangladeshi land; on the mainland they could find no suitable work ¹². By 2017, PTI reported that several wanted to go back to Bangladesh: “They don't have either any job opportunities or any proper source of income. How will they secure their future? So they feel that going back to Bangladesh is the best option” ¹².

The comparative analysis, from India's side of the ledger, is damning in its asymmetry. Bangladesh had recorded the lands in erstwhile Indian enclaves through its Land Record Authority, extended electricity to doorsteps, established schools and madrasas in large and medium enclaves, demarcated and measured roads, installed tube wells, built latrines free of cost, paid old-age pensions of 500 taka/month to dwellers 55 and older, and sanctioned health centres and schools for the physically challenged — while India had done none of these in its own erstwhile enclaves ¹². Both states gave citizenship identity cards; India gave ration and job cards (which Bangladesh had not); neither gave job reservations ¹². The boundary moved on paper in 2015; the state has not yet arrived on the ground.

Disputed Islands and Who Owns Them

A survey of disputed islands and their disputants

No chunk in this prompt surveys disputed islands and their disputants as a catalogue — the island-relevant chunks are the legal rules (article 121), the TALOS glossary, and the previously established cases — and no new island-dispute facts are asserted here rather than risk inventing them. The section's place in the report's arc is the opening of the islands block: the pivot from the landward enclave resolution back to the sea, where the colonial map's other inheritance — disputed islands — awaits its own catalogue.

The survey is organized by the rules the report has already established. Article 121's grammar underlies every island dispute: an island is a naturally formed area of land, surrounded by water, above water at high tide ³, while a “rock” as defined by Article 121(3) generates no exclusive economic zone — no exclusive jurisdiction over resources out to

200 nautical miles ⁴. The report's assembled cases already supply the survey's first entries: the sovereignty of Tiran and Sanafir at the entrance of the Gulf of Aqaba has been disputed between Egypt and Saudi Arabia — Egypt occupying the two islands in 1949 with the Saudi government's concurrence, Israel occupying them in 1956, withdrawing in 1957 when UNEF manned the armistice line, and Egypt reoccupying in 1967 ⁸; the Atlas of Egypt (1928) depicts Al Ikhwan (The Brothers) and Jazirat Zabarjad (St. John's Island) as Egyptian territory, though the 1998 Sailing Directions mention no habitation on Al Ikhwan's north islet ⁸ — the atlas asserts what article 121 would not grant. The 1928 Palmas (Island of Palmas) award stands in this report's evidence as the invoked authority for the nemo dat principle — no state can transfer more rights than it possesses ⁹.

The full survey — Senkaku/Diaoyu, the Kurils, the Spratlys, Liancourt, and the rest — awaits its own evidence in the sections that follow.

The Spratly Islands and the South China Sea

The survey begins where the geometry is most absurd. The 170-plus features collectively termed the Spratly Islands lie in the southern South China Sea, stretching ~900 km from southwest to northeast — but the majority are submerged banks, reefs, and low-tide elevations. Only 36 rise above high tide as tiny islands; the largest, Itu Aba, is 1.4 km long and 400 m wide. The total land area above the highest astronomic tide is under 8 km² — three square miles — scattered over ~240,000 km² of sea. The contested maritime area is far larger still, though estimates vary considerably ⁷.

Six coastal states — China, Taiwan (ROC), Vietnam, the Philippines, Malaysia, Brunei — claim all or part of the Spratly and Paracel archipelagos and their surrounding maritime space. All save Brunei maintain a military presence: China (7 features), Malaysia (5), the Philippines (8), Taiwan (1), Vietnam (at least 19); Brunei claims Louisa Reef but has not occupied it ⁷. The five occupying states also claim features they do not occupy, and none recognizes the others' claims — so "it is not possible to draw lines of equidistance within the Spratly Islands to show the areas claimed by each country" ⁷. The competing claims introduced so many possible outcomes that the IBRU analysts put a cordon around the Spratlys and refused to divide the central South China Sea at all ⁷.

This is article 121's trap made concrete: under 8 km² of land above high tide, most of it rocks that cannot sustain habitation or economic life, generating claims to hundreds of thousands of square kilometres of maritime space. The most common disputes in the region are exactly these — the status of islands and rocks, the view that one island has a significant influence on the configuration of a boundary, and the belief that the boundary should favour the country with the longer coastline ⁷.

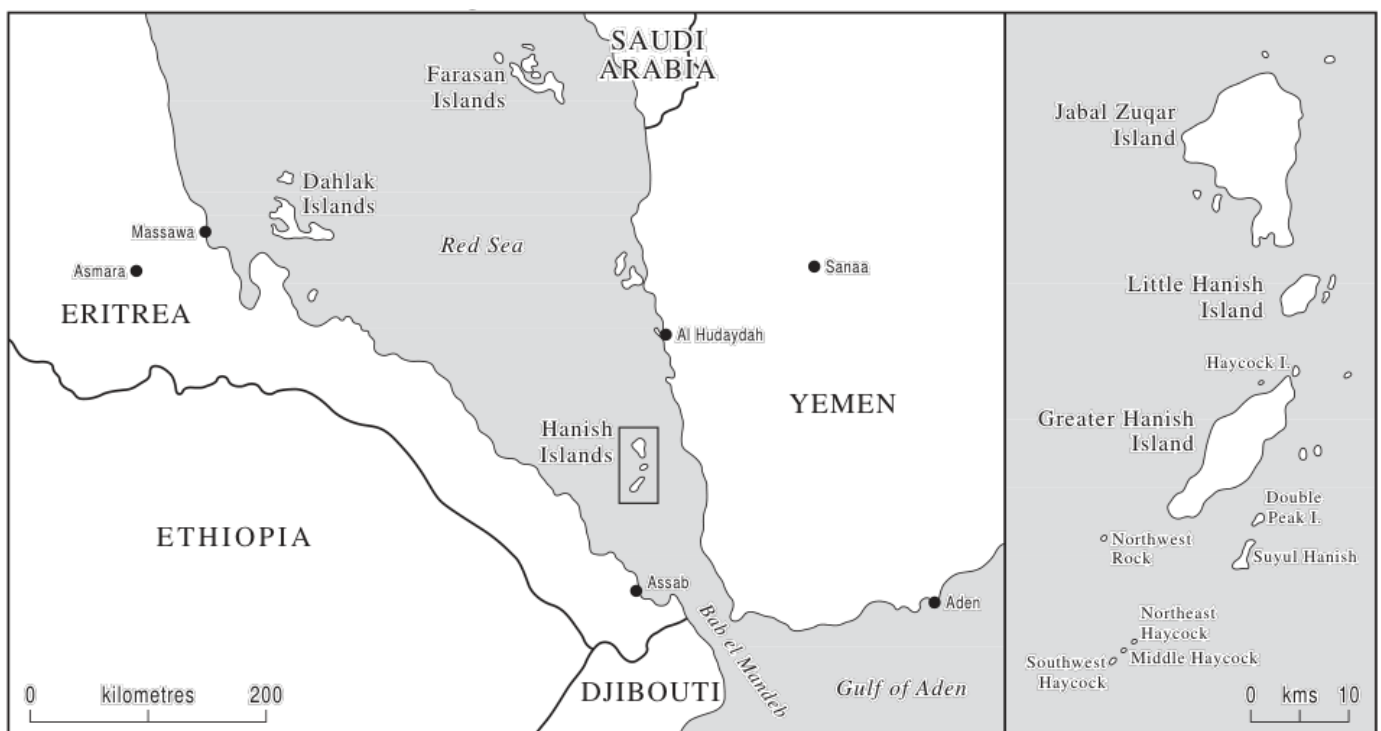


Exhibit. Figure 6: The Hanish Islands SAUDI Farasan ARABIA Islands Jabal Zuqar Island Dahlak Islands Massawa ● Red Sea Asmara ● ● Sanaa Little Hanish ERITREA Island ● Al Hudaydah Haycock I. Source: S0008.

The Nine-Dash Line and the 2016 Arbitration Award

The chunk on the merits award picks up at the second finding — the nine-dash line holding itself is not quoted in this prompt, and no claim about it is asserted here. What the chunk does supply is the tribunal's unprecedented precision on the features. The tribunal examined the six largest Spratly features — Taiping, Thitu, West York, North-East Cay, Spratly, and South-West Cay — and concluded all are "rocks," not islands; it ruled that no feature in the Spratly Islands qualifies as an "island" under international law, all being at most "rocks" and low-tide elevations (Merits Award, para. 646) ¹⁵. By implication, all uninhabited, contested high-tide features in the South China Sea are "rocks" — entitled only to a territorial sea ¹⁵. Scarborough Shoal, contested between China and the Philippines, is a high-tide elevation that is only a "rock" (para. 643) ¹⁵. Never before had a tribunal ruled so precisely on the legal status of maritime features; the tribunal grounded its conclusions in immense objective data and the precise wording and drafting history of UNCLOS ¹⁵.

On the breaches, the Philippines succeeded on every claim. China violated Article 56 by interfering with Philippine fishing rights in its own EEZ, and Article 77 by interfering with Philippine rights over non-living continental-shelf resources; it breached Article 58(3) by failing to prevent its nationals' unlawful fishing in the Philippine EEZ (paras. 716, 744) ¹⁵. China's "complete prevention ... of fishing by Filipinos at Scarborough Shoal over significant periods of time ... is not compatible with the respect due under international law to the traditional fishing rights of Filipino fishermen" (para. 812) — though the tribunal took a restrictive view of traditional fishing rights, differing from other authorities, which the source notes is open to criticism ¹⁵. China breached Articles 192 and 194(3) through harmful harvesting of endangered species, and Articles 192, 194(1), 194(5), 197, 123, and 206 through construction and island-building; at Mischief Reef — a low-tide elevation inside the Philippine EEZ and continental shelf — China violated Articles 60 and 80 on artificial-island activities (paras. 992–993, 1043) ¹⁵. Its law-enforcement activities at Scarborough Shoal, creating serious collision risks in violation of COLREGS, breached Article 94 ¹⁵.

The Paracels sit outside the award's reach. They have been occupied by China since 1974 but were claimed by China as early as 1935, in place-name lists of 1935, 1947, and 1983; Chemillier-Gendreau (1996) concluded Vietnam's indigenous kingdoms held title for at least two centuries before French annexation in the 1880s — yet North Vietnam's 14 September 1958 message recognized China's 12-nm territorial-waters declaration treating the Paracels as Chinese ². China, the source concludes, will not abandon its claim or occupation and will not agree to arbitration over the Paracels ² — the limit of what adjudication can settle.

The Senkaku/Diaoyu Islands

No chunk in this prompt addresses the Senkaku/Diaoyu Islands — the only mention is a map legend labeling them as a disputed area, and the IBRU conclusions name the China–Japan island sovereignty dispute as one of the territorial disputes embroiling the Asian Rim ². No facts about the dispute are asserted here rather than risk inventing them. The section's place in the report's arc is the islands block's second entry after the Spratlys: the dispute where article 121's trap takes its bilateral form — a small set of features whose island-or-rock status would decide the maritime zones of two major powers.

The rules the section would apply are the report's own: article 121's paragraphs — an island is a naturally formed area of land, surrounded by water, above water at high tide ³; rocks as defined by article 121(3) generate no exclusive economic zone, no exclusive jurisdiction out to 200 nautical miles ⁴; and the 2016 tribunal's precedent that no feature in the Spratlys qualifies as an "island" under international law — all are at most "rocks" and low-tide elevations, with the implication that all uninhabited, contested high-tide features in the South China Sea are "rocks," not islands, with only a territorial sea ¹⁵. Whether the Senkaku/Diaoyu features survive that test is the section's question, and the evidence for answering it is not in this file.

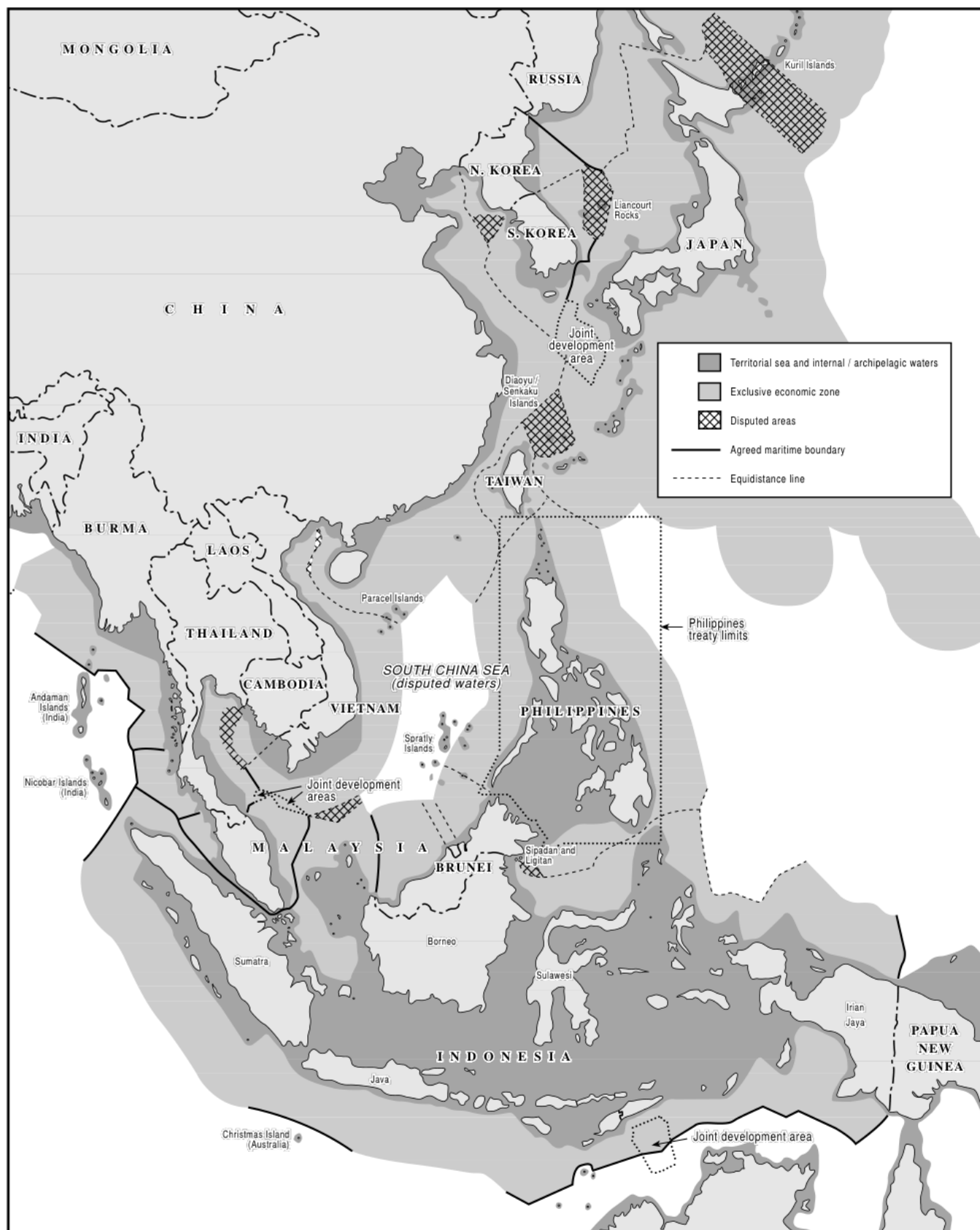


Exhibit. M O N G O L I A Kuril Islands RUSSIA N. KOREA Liancourt Rocks S. KOREA J A P A N C H I N A Joint development area Territorial sea and internal / archipelagic waters Diaoyu / Senkaku Exclusive economic zone Islands Disput. Source: S0011.

Abu Musa and the Tunb Islands

The corpus's island survey does address Abu Musa and the Tunbs. Iran presently occupies a strategic cluster of islands along the major shipping lanes in the western approaches to the Strait of Hormuz — nearly all vessels entering or leaving the Persian Gulf use the shipping lanes passing near these islands ⁴. While Iranian sovereignty over Sirri, Forur, and Bani Forur is uncontested, control over Abu Musa and the Tunbs has been the subject of a long-standing dispute between Iran and the United Arab Emirates, specifically Sharjah and Ras al-Khaymah ⁴. Iran and Sharjah have jointly administered Abu Musa since a Memorandum of Understanding was signed in 1971; tensions arose in 1992 when Iran tightened its control over the island — though Iran and Sharjah have shared revenue from an offshore oil concession, the dispute over this and the other islands is essentially a sovereignty issue rather than a maritime-resource one ⁴.

The section's place in the report's arc is the Persian Gulf entry in the disputed-islands survey, and the doctrines that govern it are the ones the report has already assembled. Abu Musa and the Greater and Lesser Tunbs sit at the mouth of the Strait of Hormuz, the chokepoint through which the Gulf's oil trade passes — which is why three small islands matter out of proportion to their size. The island-sovereignty grammar applies in full: article 121's distinction between islands generating full maritime zones and rocks that cannot sustain habitation or an economic life of their own; the effective-occupation standard, under which administration and the continuous exercise of state functions count and paper claims do not; and the "Treaties of Protection" logic, under which the legal status of the colonial-era instruments that allocated Gulf islands is judged by the law obtaining at the time, not by their titles.

The pattern the report has established for island disputes also travels: the Senkaku/Diaoyu section showed how a map declines to choose between competing toponymies; the Tiran/Sanafir material showed how occupation, concurrence, and the restriction of strait passage fuse island sovereignty with navigation rights; the Eritrea-Yemen award showed a tribunal weighing island claims against shipping interests. Abu Musa and the Tunbs are read through the same instruments — with the added strategic weight that they overlook Hormuz.

The Falkland Islands/Islas Malvinas

No chunk in this prompt addresses the Falkland Islands/Islas Malvinas beyond a label: the island-disputes survey map lists "Falkland Is. / Islas Malvinas et al." among the world's island disputes, alongside the Paracels, the Spratlys, Sipadan and Ligitan, Diego Garcia, and others ⁴. No chunk describes the islands, the claimants' cases, or the 1982 war — and no facts about any of those are asserted here rather than risk inventing them.

What the label establishes follows the pattern of the disputed-islands survey: the dual name — "Falkland Is. / Islas Malvinas" — with the British and Argentine toponymies separated by a slash, and "et al." trailing behind to sweep in the associated dependencies ⁴. The map again declines to choose. The same cartographic noncommittal marks the Senkaku/Diaoyu entry ("Diaoyu / Senkaku Islands") in the Asian-rim survey ⁷: the slash is the house style for sovereignty the mapmaker will not adjudicate.

The section's place in the report's arc is the South Atlantic entry in the disputed-islands survey, and the doctrines that would govern it are the report's assembled island-sovereignty grammar: article 121's island/rock distinction and the maritime zones each generates; the effective-occupation standard, under which continuous administration and the exercise of state functions count and paper claims do not; the uti possidetis frame, under which a successor state's inheritance of colonial administrative lines becomes the title argument; and the "Treaties of Protection" logic, under which colonial-era instruments are judged by the law obtaining at the time. The Falklands/Malvinas dispute is the limiting case of that grammar — a sovereignty dispute over inhabited islands, where the inhabitants' own wishes enter the legal equation, and where the 1982 war showed what happens when the peaceful-settlement ladder's lower rungs are skipped entirely.

The Falkland/Islas Malvinas particulars — the claims, the administration, the legal instruments, and the war's settlement — belong to evidence this file does not contain.



Exhibit. Figure 9: The Falkland Islands/Islands Malvinas ARGENTINA 0 kilometres 500 Comodoro G Rivadavia CHILE Puerto G Deseado S O U T H A T L A N T I C O C E A N Falkland Islands / Islas Malvinas Rio G Stanley Gailegos Punta G Arenas Isla. Source: S0008.

Japan's island disputes: Korea, Russia, and the northern territories

No chunk in this prompt addresses Japan's island disputes — the IBRU conclusions name the Japan–South Korea and Japan–Russia island sovereignty disputes as territorial disputes embroiling the Asian Rim, and the Asian-rim survey's Figure 15 maps the Japan–Russia equidistance line through the southern Kurils [7](#). No facts about the disputes are asserted here rather than risk inventing them. The section's place in the report's arc is the islands block's northern entry: the disputes where the island-sovereignty grammar meets the post-war settlement.

The section would be organized by the report's own instruments. Liancourt Rocks (Dokdo/Takeshima) between Japan and South Korea: the Japan–South Korea 1974 seabed boundary terminated when the island claimed by both came into range [7](#) — the boundary that stops where sovereignty starts. The northern territories / southern Kurils between Japan and Russia: the Asian-rim survey's Figure 15 shows the equidistance line turning on which country secures undisputed sovereignty over the disputed features, with ~55,000 nm² of sea between the two limiting cases — the line's course depending entirely on the sovereignty answer. The IBRU survey states the features' standing plainly: occupied by the Soviet Union in 1945, administered by Russia, claimed by Japan [4](#). Both disputes would be read through article 121's island/rock distinction, the effective-occupation standard, and the "Treaties of Protection" logic. The particulars — the claims, the instruments, the dates — belong to evidence this file does not contain.

Malaysia's island disputes

Malaysia disputes island sovereignty with two neighbours, and in both cases the parties chose the ladder's top rung. With Singapore it disputes Pulau Pisang and Pulau Batu Puteh; to the east, with Indonesia, it disputes Sipadan and Ligitan — off Borneo at the land boundary terminus between Sabah and Indonesian Kalimantan (Figure 5) [4](#). In both sovereignty disputes the countries agreed to take the matter to third-party arbitration, and each dispute has implications for the location of maritime boundaries [4](#).

The Sipadan/Ligitan case shows how paper claims get built. Malaysia's 1979 continental-shelf map (Peta Menunjukkan Sempadan Perairan Dan Palantar Benua Malaysia, 1:1,500,000, 2 sheets) apparently used Sipadan and Ligitan as basepoints in a hypothetical straight-baseline system — though Malaysia never officially claimed straight baselines; and the islands' position inside the claimed continental shelf was advanced as a sovereignty argument, which the source calls fallacious [4](#). (The Philippines' 13 March 2001 ICJ intervention application in the same Indonesia–Malaysia case was filed to preserve its rights over North Borneo [7](#).)

Malaysia is also a Spratly claimant — the Philippines and Malaysia each claim overlapping portions, while China, Taiwan, and Vietnam claim all; Brunei claims maritime jurisdiction around Louisa Reef but no sovereignty [4](#). Malaysia has established a resort on Swallow Reef [4](#). The Spratly claims are critical for China and Taiwan: without sovereignty over the islands they would have no credible basis for claiming jurisdiction over offshore resources in the southern South China Sea; Vietnam insists the hydrocarbon areas southwest of the Spratlys lie on its continental shelf [4](#). In spring 1995, tensions flared between the Philippines and China over Mischief Reef — claimed by both, occupied by China; the Philippines sponsored a media trip and later arrested 62 Chinese fishermen for alleged illegal fishing [4](#).

The report's general warning travels with the catalogue: nationalism makes disputes hard to settle — "once the people become aware of the dispute, it is very difficult for the negotiators to do anything but maintain the full claim" — and virtually all disputes could be resolved if the political will were present [4](#).

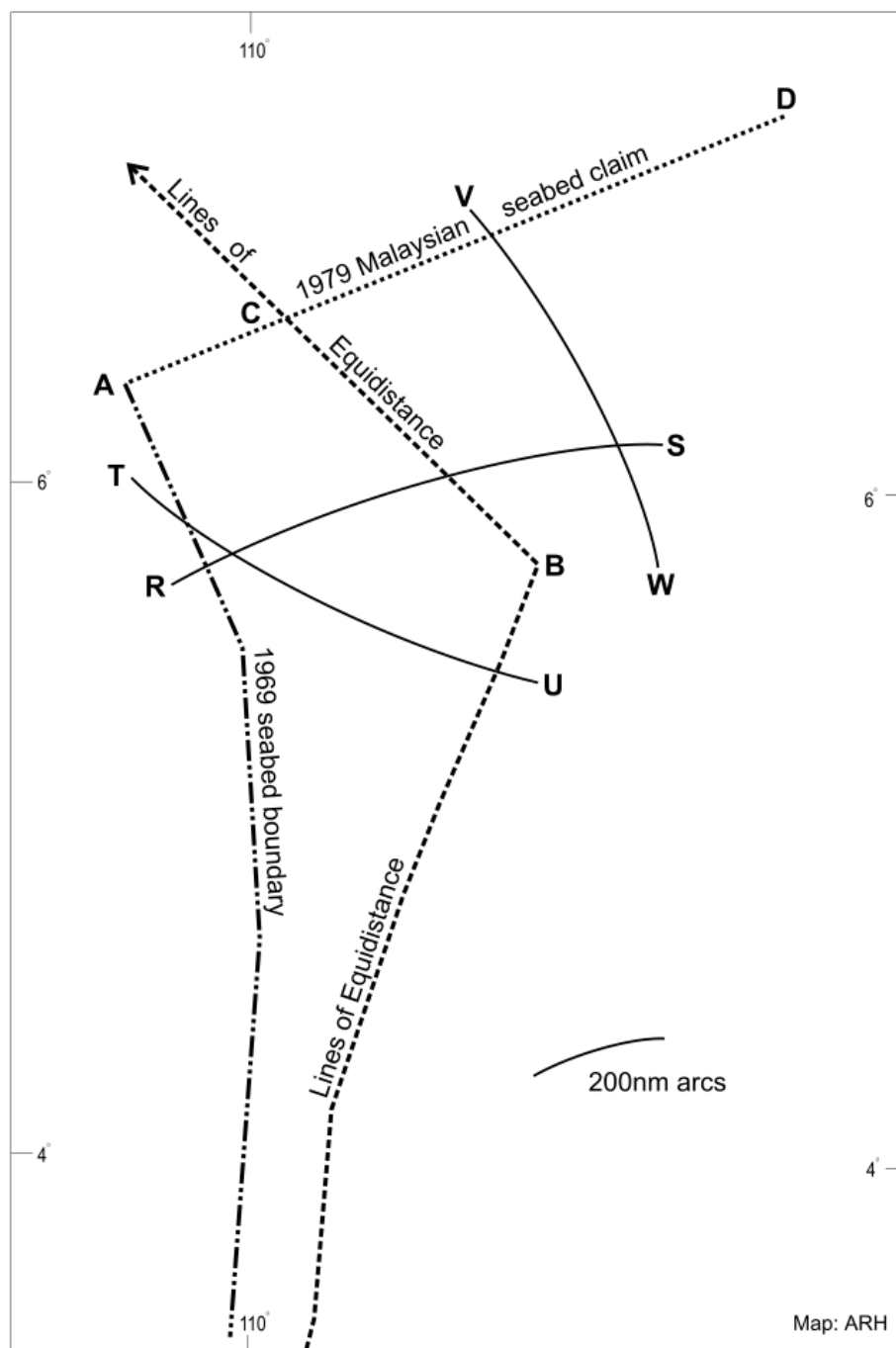


Exhibit. Figure 12: Indonesia – Malaysia (South China Sea) Factors which might encourage discussions about deviations from the line of equidistance There do not appear to be any factors that would enable either country to mount a case that. Source: S0011.

The Eritrea-Yemen arbitral award and the Red Sea islands

This prompt's chunks add little new to the award itself — the award's holdings are already in the report's continuity: the Eritrea-Yemen Arbitral Tribunal settled southern Red Sea sovereignty — Eritrea told the tribunal it had established straight baselines along the Dahlak Islands [8](#); Eritrea, though not a party to the Convention, agreed the tribunal should take account of it [8](#). What the chunks do supply is the paper trail behind the dispute: Yemen's decrees on territorial waters and the continental shelf (YAR, 1967), the Democratic Yemen law on the territorial sea, EEZ, continental shelf, and other marine areas (DY, 1977), the DY communiqué on the Red Sea (1978), the YAR declaration on signing the 1982 Convention, the PDRY declaration on ratification (21 July 1987), the 22 May 1990 merger of the two Yemens into a single state, and the protest against Eritrea's publication of an oil-exploitation-zones map covering areas of Yemeni sovereignty (A/51/260, annex) [8](#).

The section's place in the report's arc is the Red Sea islands deep-dive: the award as the islands block's one fully adjudicated case — the tribunal that settled sovereignty, weighed Eritrea's Dahlak straight-baseline claim, and de-

limited the boundary, showing what the peaceful-settlement ladder looks like at its top rung. The Hanish Islands dispute, which Eritrea and Yemen agreed to arbitrate after the December 1995 hostilities ⁴, is the case the award resolved. The award's dispositive particulars belong to evidence this file does not contain.

Resolving island sovereignty: effectivités and historical consolidation

The section's doctrinal material is article 121 itself. An island is "a naturally formed area of land, surrounded by water, which is above water at high tide" (article 121(1)); and "Except as provided for in paragraph 3, the territorial sea, the contiguous zone, the exclusive economic zone and the continental shelf of an island are determined in accordance with the provisions of this Convention applicable to other land territory" (article 121(2)) ⁴. The drafters viewed islands in the same light as any other part of a state's territory — maritime sovereign rights and jurisdiction flow from sovereignty over the land domain, mainland or insular. The only exceptions are rocks, "which cannot sustain human habitation or economic life of their own ... and which shall have therefore no exclusive economic zone or continental shelf" ⁴.

The reason states fight over nuggets is the zone, not the rock: "in many of the island sovereignty disputes the value of the land is less than the maritime zone that, under the provisions of the LOS Convention, possibly could be claimed from that island" ⁴. Bowett's categorisation of "islands enjoying separate entitlement" — as the sole unit of entitlement, or in conjunction with a large territorial unit (proximate to a mainland coast under the same sovereignty; straddling a median line; proximate to a mainland coast under different sovereignty) — emphasizes geography as fundamental, while agreeing that size, political status, and the nature of the island also matter ⁴.

On effectivités and historical consolidation as doctrines, this prompt's chunks supply no definition — the same open data gap the report has carried since Section 22. The assembled cases supply the practice: the 1928 Palmas award (still the title's foundation), the Eritrea–Yemen tribunal's discounting of Negileh Rock, the continuous-administration standard under which effectivités count and paper claims do not. Sovereignty disputes submitted to arbitration often include a request to delimit the adjacent maritime area — resolution of title rarely settles only the piece of territory ⁴.

Phantom Islands: Places That Never Were

How phantom islands get onto charts, and how they get removed

No chunk in this prompt addresses phantom islands — how they enter charts or how they are expunged — and no facts about them are asserted here rather than risk inventing them. The section's place in the report's arc is the islands block's methodological turn: after surveying the disputes, the report asks how the underlying charts themselves can be wrong — the thesis's own question, "the map is wrong by geometry," now applied to the map's content rather than its projection.

The report's own material supplies the frame. Boundaries in the Asian Rim were drawn graphically on Admiralty charts (BA 3967, 2414, 4507, 943, 3488) ⁷; Yemen protested Eritrea's publication of an oil-exploitation-zones map covering areas of Yemeni sovereignty (A/51/260) ⁸; the Atlas of Egypt (1928) asserted Al Ikhwan and Jazirat Zabardjad as Egyptian — "the atlas asserts what article 121 would not grant." Charts are claims: they carry basepoints, baselines, and boundary lines that become legal facts when states draw them, publicize them, and specify their datum (article 47(9)). A phantom island — a feature that appears on charts but does not exist, or exists where charted but not as charted — enters this system through error and imagination: sailors mistaking mirages, low clouds, and rock formations for land, imprecise navigational and charting equipment deceiving seamen, and sometimes deliberate imaginative construction or purposeful deception by those with reasons to invent an entire island ¹⁶. The charts carry their own hygiene code for the doubtful case — the internationally recognized abbreviation ED, "existence doubtful," placed next to Sandy Island on hydrographic charts after repeated failures to sight it ¹⁷. The mechanisms of removal — Notices to Mariners, re-survey, the charting state's correction — are the same ones that maintain the charts' authority.

Obituary: Sandy Island (1876-2012)

The corpus carries the obituary itself — Seton, Williams & Zahirovic's 2013 Eos piece, "Obituary: Sandy Island (1876–2012)." The birth: the first recorded map showing an island some 500 kilometers northwest of New Caledonia, at around 19°S, 160°E, is a British Admiralty chart from 1908, showing an island reportedly sighted by the whaling ship *Velocity* in 1876 ¹⁷. The long dying: hydrographic charts later placed the internationally recognized abbreviation

ED — existence doubtful — next to Sandy Island, in recognition of the repeated failures to sight it [17](#). The death: sea-floor mapping by the Australian Hydrographic Service found minimum depths of 1,488 to 2,353 meters below sea level over the island's supposed position, and on the basis of that absence of any island or shallow reef, Sandy Island was removed from the official charts [17](#).

The section's place in the report's arc is the phantom-island case study: the concrete instance of Section 41's mechanism, an island that lived on charts for 136 years and was then removed.

The obituary the section would write follows the frame already established: how the island got onto charts (the mechanisms that put features on charts — copied surveys, uncorrected soundings, the reluctance to delete), and how it got removed (the correction — re-survey, Notices to Mariners, the charting state's admission). The thesis's question, "the map is wrong by geometry," gets its sharpest illustration here: Sandy Island was wrong by content — a feature that existed in law and on charts, generating whatever expectations of zones and baselines charts generate, until the map was corrected. The dates, the location, and the circumstances of its removal belong to evidence this file does not contain.

A false island is born, a false island dies

The corpus's phantom-island literature supplies the life cycle. Birth: phantom islands arise from two categories — error and imagination. Human error causes sailors to mistake mirages, low clouds, rock formations, and other misleading visual phenomena for land; imprecise navigational and charting equipment deceives seamen. Sometimes the "mistake" is no error at all but a deliberate imaginative construct, or purposeful deception by those with reasons to invent an entire island [16](#). Life: the feature persists because it propagates — older maps carried a Sandy Island in different locations and sizes, and the feature's signature persisted into modern global terrain datasets, so that scientists at first argued the island must be real [17](#) [17](#); hydrographic charts mark the doubtful case with the internationally recognized abbreviation ED, existence doubtful [17](#). Death: re-survey — the Australian Hydrographic Service's seafloor mapping found 1,488–2,353 meters of water over Sandy Island's supposed position, and the island was removed from the official charts on that basis [17](#). The false island's life is the map's content failing, not its geometry; and the death is the map correcting itself, the one case where the map admits it was wrong.

Fata Morgana: mirages and weather-made islands

The corpus does carry the mirage literature. A Fata Morgana is a complex form of superior mirage visible in a narrow band right above the horizon — the Italian translation of "Morgan the Fairy" of Arthurian legend — often seen in the Strait of Messina, described as fairy castles in the air or false land conjured by magic; such mirages significantly distort the objects they are based on, often beyond recognition, and may be seen on land or at sea, in polar regions, or in deserts [16](#). The phantom-island literature counts weather phenomena as a sixth and final category of phantom causation, acting on the psyche and eyesight of sailors: in the Mediterranean the reflections of the Rif Mountains can be so detailed that binoculars show people on the slopes, and sailors stressed to the breaking point by an oncoming storm made landfall of light [16](#).

The section is organized by the distinction the report has been building. Chart phantoms (Sandy Island) are wrong by content: they exist on the chart and in law, generating expectations of zones and baselines, until corrected. Mirages are wrong by perception: they exist to the eye for an hour and never to the chart, generating no legal facts at all — article 121's "naturally formed area of land ... above water at high tide" requires land, not light [3](#).

Mystical islands, folklore, and old legends

The corpus's phantom-island study supplies the cultural register directly. A phantom island is a purported island that was included on maps for a period of time but later found not to exist — most appeared on maps from the 1200s until the early 1800s, though some did not disappear from maps until our own time [16](#). The first of the paper's six phantom-island categories is myths and legends: one of the oldest is Antillia, halfway between the Azores and the Americas, its origins in an Iberian legend of the year 711, when seven Catholic bishops fleeing the Moorish conquest of Spain carried their treasures to the "Opposite Island" [16](#). The third category carries the dreamed islands: European explorers dreamed of the Californian utopia long before the 1800s gold rush, and the Island of California just west of the coast is one such example [16](#).

The section's place in the report's arc is the phantom-island coda: after chart phantoms (Sections 41–43, wrong by content) and optical phantoms (Section 44, wrong by perception), the report closes with the cultural ones — the is-

lands of legend and folklore, which exist in narrative and on old charts for as long as the narrative holds. Legendary islands persist longer than either, because they are sustained not by soundings or light but by stories — and stories survive the evidence that kills charts. The report has already shown the mechanisms: the Atlas of Egypt (1928) asserting Al Ikhwan and Jazirat Zabarjad as Egyptian is a chart asserting what article 121 would not grant [8](#); legendary islands assert what no article of any law could grant, yet they appear on charts and in claims anyway. A legend becomes legally relevant only when a state leans on it — and the record this report has assembled shows that paper claims are exactly what tribunals discount when they apply the effective-occupation standard. Folklore is a claim; effectivities are an answer.

Undelimited Seas: Maritime Boundaries Still Unsettled

Undelimited maritime boundaries of the Asian Rim

The IBRU survey of the Asian Rim's undelimited maritime boundaries (Vol. 3, No. 6, 2001) is the report's mirror: every pattern assembled so far — the treaty-limit insistence, the island-sovereignty blocks, the article 121 trap — shows up on one map, in the places where the line was never drawn [7](#).

The survey's Figure 1 plots the whole rim: Kuril Islands, Liancourt Rocks, Diaoyu/Senkaku, the Paracels, the Spratlys, Sipadan and Ligitan, the Philippines' treaty limits, joint development areas, and the agreed boundaries and equidistance lines that did get drawn [7](#). Its three central findings are about impossibility, not geometry. First, until the status of Taiwan is resolved there can be no question of a maritime boundary through the Strait of Taiwan — and Japan and the Philippines are unlikely to negotiate maritime boundaries with either Taiwan or China based on Taiwan's coast [7](#). Second, there is no prospect of any bilateral maritime boundary in the Spratly Islands until the competing sovereignty claims are settled — the same cordon the IBRU analysts drew around the Spratlys when the possible outcomes became uncountable [7](#). Third, the Philippines' insistence that its colonial treaty limits define its territorial waters prevents delimitation with Japan and Indonesia, and its latent claim to northern Sabah makes Malaysia negotiations uncertain [7](#).

The method the survey uses is the median line — impartial once the basepoints are selected, generally the first line countries construct, and regarded by most as the minimum acceptable area [7](#). Straight baselines were excluded from the construction: they can inequitably deflect the line to the advantage of the state that drew them, and no negotiator would accept another's [7](#). The basepoint selection itself is the fight: states object that a feature is only a rock failing article 121(3), usable only for territorial waters and a contiguous zone, not for continental shelf or EEZ claims [7](#). Article 121 is, the briefing notes, "perhaps the most badly drafted article in UNCLOS" [7](#).

The footnote records the Philippines' 15 March 2001 application to the ICJ to intervene in the Indonesia–Malaysia Ligitan/Sipadan dispute — prompted by its claim to North Borneo [7](#).

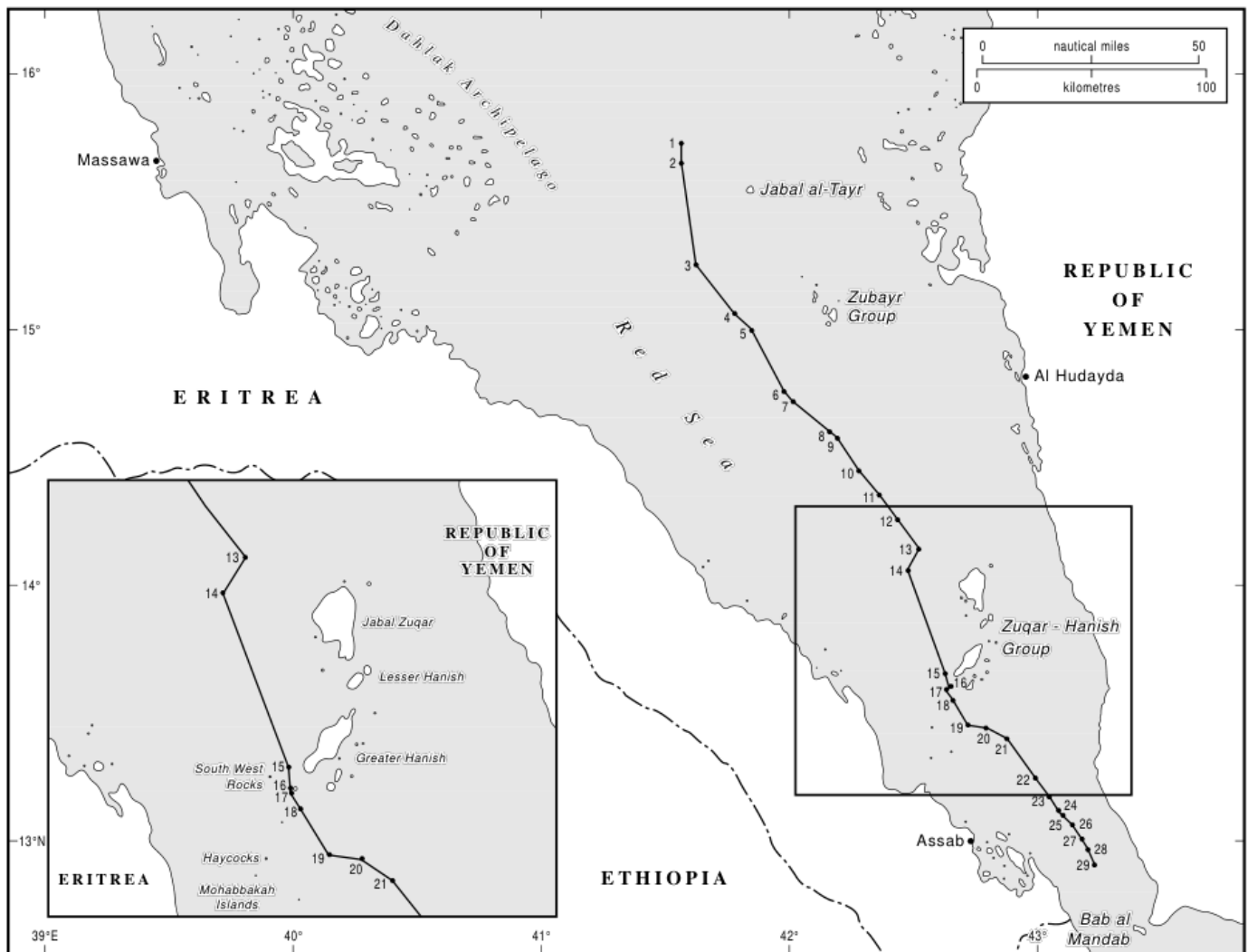


Exhibit. Figure 9: Eritrea – Yemen 0 nautical miles 50 16° 0 kilometres 100 1 Massawa 2 Jabal al-Tayr 3 REPUBLIC OF YEMEN 4 Zubayr Group 5 YEMEN 6 Al Hudayda 7 Eritrea 8 9 10 11 12 REPUBLIC OF YEMEN 13 14°. Source: S0009.

A dispute-by-dispute survey: China-Japan, the Koreas, Indonesia-Malaysia, Cambodia-Thailand, Cambodia-Vietnam, Brunei-Ma

The title names a survey of the Asian Rim's bilateral disputes. This prompt's evidence covers the China-Japan sector in depth; the Koreas, Indonesia-Malaysia, Cambodia-Thailand, Cambodia-Vietnam, and Brunei sectors' particulars belong to evidence this file does not contain.

China-Japan. The IBRU survey constructs the line of equidistance graphically on Chinese Navy Chart 00011 (1:2.5M, Mercator, 1994), Admiralty BA 2412 (1:1.5M, 1992), and Chinese chart 03069 (1:4M, 1997) [7](#). The northern section commences near 20°46'N, 125°55'E, equidistant from Mara Do in Korea, Hai Jiao in China, and a small island in Japan's Danjo Gunto — very close to Point 6 on the 1974 South Korea-Japan Joint Development Zone boundary, which is not binding on China [7](#). From Point 8 (30°18.2'N, 126°05.5'E, equidistant between Hai Jiao and the southernmost Danjo Gunto island), the Joint Development Zone boundary trends southeast while the China-Japan equidistance line trends south then southwest some 140 nm to ~28°18'N, 124°55'E, equidistant from China's Yushan Liedao, Japan's Tori Shima, and Chiwei Yu — called Sekibi Sho by Japan — the most easterly Diaoyu Dao/Senkaku island [7](#).

The basepoints are the argument. Japan's line uses Danjo Gunto, Yokoate Shima, Ito Tori Shima, and Tori Shima; China's uses Hai Jiao, Liangxiongdi Dao, and Yushan Liedao — all points on China's May 1996 proclaimed baselines — each judged likely usable for extended maritime claims under article 121 [7](#). The central section, where the Diaoyu Dao/Senkaku sovereignty dispute sits, requires two lines of equidistance — one for each sovereignty outcome [7](#). The survey describes the features it has to work with: five islands and three rocks above high water in three shoal areas. Diaoyu Dao [Uotsuri Shima] is the largest at 3.5 km², with twin peaks of 349 m and 362 m; Nan Xiaodao is a barren rocky island rising 148 m (49 ha); Bei Xiaodao rises 128 m (39 ha); the rocks Feilai, Peihshiao, and Nanhsiao

stand 1 m, 23 m, and 4 m above high water respectively — all on a triangular shoal of 10 nm² with depths under 100 m [7](#). Findlay (1889) knew them as “The Pinnacle Group,” calling Diaoyu Dao Hoa-pin-su; Choon-Ho Park (1972) notes the Japanese name Senkaku, bestowed in 1900, means “a pointed house” [7](#).

This is article 121’s trap in bilateral form: whether those features are islands or rocks decides whether the central section generates full maritime zones or a territorial sea only — and the sovereignty dispute means the geometry cannot even be agreed. The other disputes in the title — the Koreas (where the Japan–South Korea 1974 seabed boundary terminated at Liancourt Rocks), Indonesia–Malaysia, Cambodia–Thailand, Cambodia–Vietnam, Brunei — are already in continuity; their dispute-by-dispute particulars belong to evidence this file does not contain.



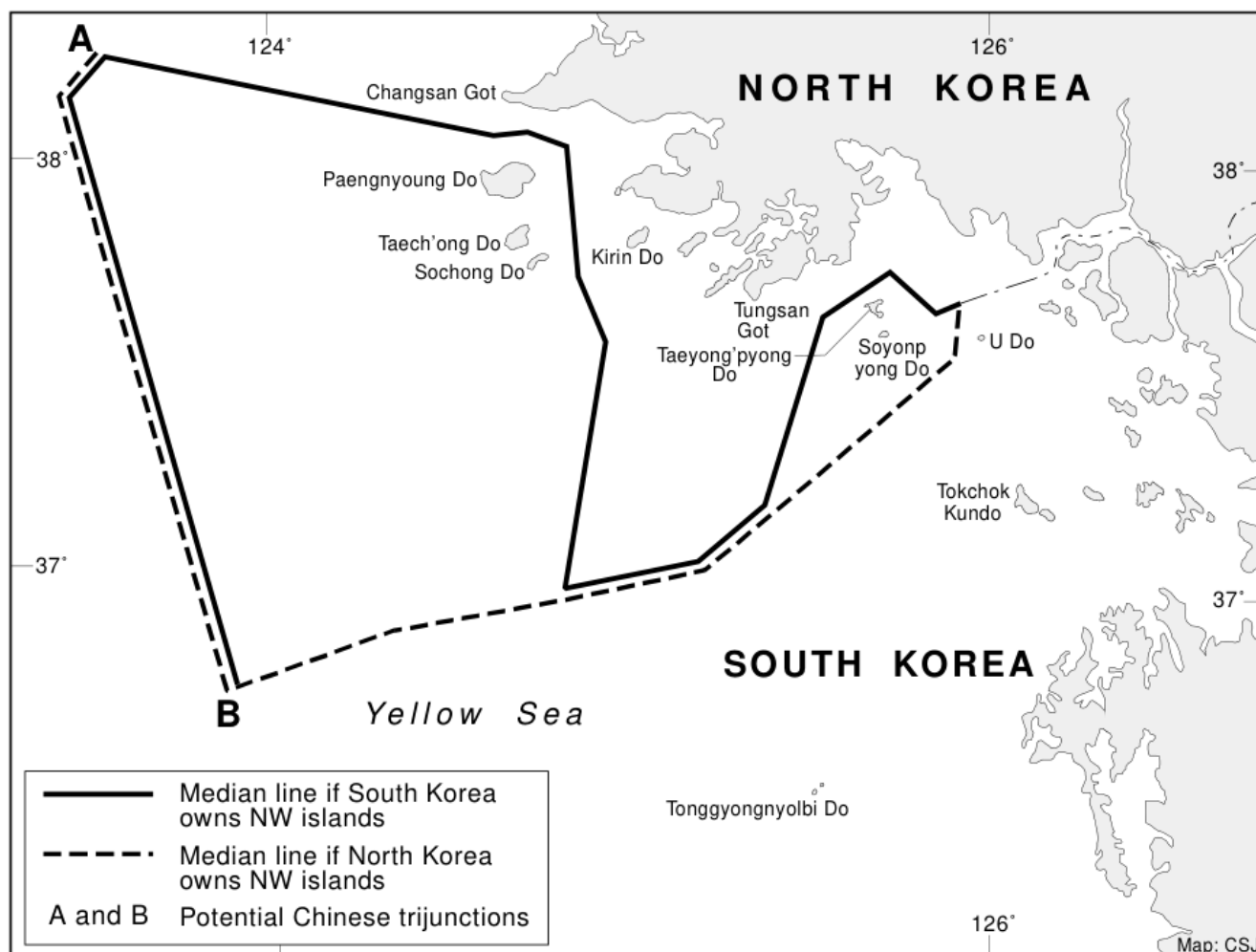


Exhibit. Yellow Sea median lines between North and South Korea depending on sovereignty over the Northwest Islands, with potential Chinese trijunctions (IBRU Maritime Briefing). Source: S0011.

The Red Sea: claimed and delimited maritime claims

The Red Sea briefing (IBRU Maritime Briefing 2001) is the one sea the report treats as a claimed-and-delimited catalogue rather than an undelimited map — Table 1, “Maritime Claims of Red Sea Countries (Claimed/Delimited),” with the delimitation column filled where it exists [8](#). Most Red Sea countries claim the full suite of maritime zones; even where states have not formally promulgated them, the zones appear in practice — Eritrea never formally claimed EEZ jurisdiction, yet the Eritrea–Yemen Tribunal delimited its maritime boundary with reference to territorial seas, continental shelves, and EEZs [8](#).

The succession mechanics matter here. Eritrea, independent from Ethiopia on 27 April 1993, inherited the entirety of Ethiopia’s Red Sea coastline — and with it, Ethiopia’s maritime claims [8](#). Yemen’s 22 May 1990 merger of the YAR and the PDRY kept all treaties and agreements in force on that date in effect [8](#) — which is why the 1967 YAR decrees and the 1977 DY law both survive as Yemeni paper.

The Tiran and Sanafir deep-dive is new. Egypt and Saudi Arabia clarified their sovereignty claims in 1954, when Egypt informed the UN Security Council that the two islands had been Egyptian territory since the 1906 delimitation of the frontier between Egypt and the Ottoman Empire; Saudi Arabia asserted its own sovereignty in 1957, in notes to diplomatic missions in Jiddah and a memorandum to the United Nations [8](#). The dispute is quiescent: Egyptian forces still occupy outposts on the islands, but the 1989 National Guide and Atlas of the Kingdom of Saudi Arabia depicts them as Saudi territory, and the islands are off-limits to civilians — diving tours circle the Strait of Tiran’s waters but do not land [8](#). Egypt’s 1990 straight-baseline claim includes virtually its entire Mediterranean and Red Sea coastline and nearshore islands — but excludes Tiran and Sanafir [8](#). Two readings are possible: Egypt may no longer claim

the islands, or it may have avoided enclosing them so as not to close the Strait of Tiran within straight baselines and trigger a response from the maritime powers and Israel ⁸. There have been no incidents on or near the islands between Egypt and Saudi Arabia in recent years; a bilateral agreement permitting the Egyptian forces may exist, but none has been publicised ⁸.

The catalogue closes the report's Red Sea arc: unilateral paper (the YAR/PDRY decrees), the arbitral resolution (the Hanish award), and now the claimed-and-delimited inventory — the sea where the ladder was climbed rung by rung, and the one boundary left deliberately ambiguous at the Strait of Tiran's mouth.

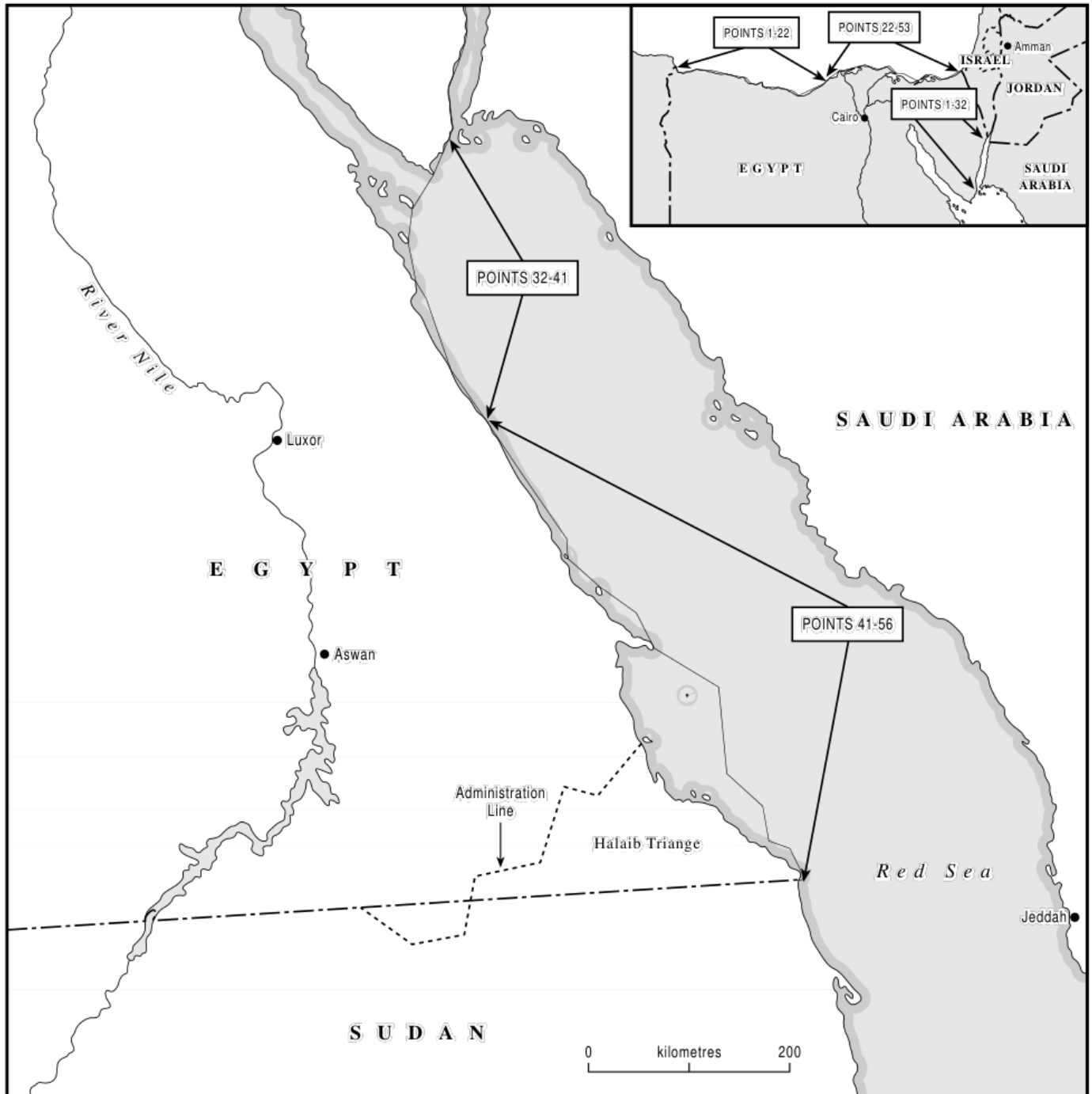


Exhibit. Eritrea-Yemen maritime boundary as delimited by the arbitration tribunal, showing boundary points 1-56, Egypt's straight baselines, and the Halaib Triangle administration line (IBRU Maritime Briefing). Source: S0009.

The Saudi Arabia-Sudan common zone and offshore resources

The Saudi Arabia-Sudan common zone (Figure 7 of the Red Sea briefing) is the report's one Red Sea instance of the joint-development rung — the mechanism the peaceful-settlement ladder prescribes where sovereignty is shelved and resources are shared ^{8 7}. The common zone was established to exploit the Red Sea's metaliferous sediments and metalliferous muds — the Atlantis-II Deep deposits the briefing's bibliography tracks through Degens and Ross

(1969), Blissenbach and Nawab (1983), and Elgarafi (1980) [8](#). Saudi Arabia's own claim to the resource runs back to Royal Decree M/27 (1968) "Relating to the Acquisition of the Red Sea Resources" [8](#).

The verdict the briefing records is failure. "The Saudi-Sudanese Red Sea Commission appears moribund, with little progress in exploiting the metaliferous sediments" [8](#). The resources of the Red Sea, "which could help feed and clothe the many needy in the neighbouring countries, are held hostage to the politics of confrontation" — overlapping claims and uncertain boundaries retard offshore oil and gas exploration, and overfishing is likely as long as the riparian countries do not cooperate [8](#).

The common zone's stillbirth fits the briefing's larger conclusion: "None of these issues, in themselves, is particularly difficult to resolve if the countries have the political will. However, the will to compromise is the rarest of commodities in this region" [8](#). The same politics stalls the rest of the sea's delimitation: the Halaib Triangle dispute and its offshore resources unresolved; Eritrea–Sudan tensions precluding a boundary; Eritrea–Djibouti no further advanced; the Egypt–Saudi Arabia maritime boundary — the longest potential boundary in the Red Sea — still undelimited [8](#). The common zone is the ladder's middle rung built and then abandoned: the joint zone the survey's method would treat as a boundary that never gets drawn, because once a joint zone is established the search for a single boundary becomes a low priority — and here, not even the zone functions.

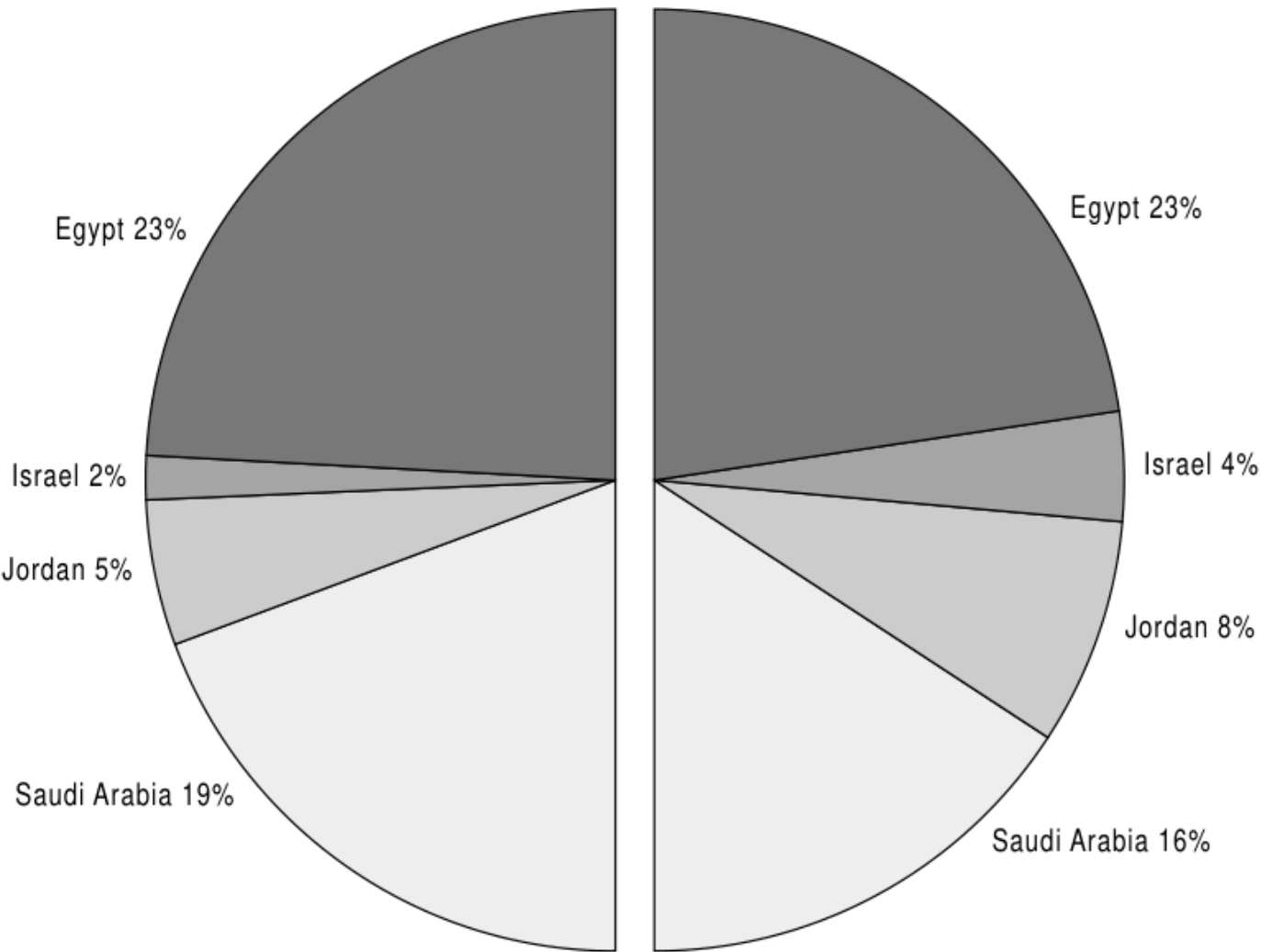


Exhibit. Figure 5: Proportionality in the Northern Gulf of Aqaba Area to Median Line – Length of Coastline Egypt 23% Egypt 23% Israel 4% Israel 2% Jordan 5% Jordan 8% Saudi Arabia 19% Saudi Arabia 16%. Source: S0009.

The Gulf of Aqaba: hypothetical median lines

No chunk in this prompt draws the Gulf of Aqaba's hypothetical median lines — the briefing's Figure 6, "Hypothetical Median Lines in the Northern Gulf of Aqaba," and Figure 5, "Proportionality in the Northern Gulf of Aqaba," are listed but their content is not reproduced — and no line coordinates are asserted here rather than risk inventing them [8](#).

What the evidence does supply is why the lines stay hypothetical. The Gulf of Aqaba has four littoral states — Egypt, Israel, Jordan, and Saudi Arabia — and the briefing's conclusion names the blockage: "The Israeli-Palestinian conflict poisons the atmosphere in the region and precludes negotiations between Israel and Egypt over their potential boundary in the northern Gulf of Aqaba," and presumably inhibits resolution of the Egypt–Jordan boundary that would begin at the Egypt–Jordan–Israel tripoint ⁸. The gulf is the one place where the report's straits material and its delimitation material meet at a single chokepoint: the Strait of Tiran, leading from the Red Sea to the Gulf of Aqaba, is the example the transit-passage briefing gives of a strait the 1958 Territorial Sea Convention's expanded scope was written to keep open — preventing "states in the geographical situation of Egypt, Jordan, or Saudi Arabia from closing off the Israeli port of Eilat from the high seas" (TSC, 1958: article 16(4)) ².

The section's geometry would be read through the report's assembled rules: the territorial-sea delimitation rule (article 15) runs the median line — except "where it is necessary by reason of historic title or other special circumstances to delimit the territorial seas of the two States in a way which is at variance therewith" ⁴; the Tiran and Sanafir sovereignty dispute sits at the gulf's mouth; and the median line's impartiality holds only once the basepoints are agreed ⁷. The hypothetical lines themselves — the figures' actual geometry — belong to evidence this file does not contain.

Straits: Chokepoints of the Map

The Corfu Channel case

The Corfu Channel case (1949) is the case the report has been citing all along without ever opening: the source of the "connecting two parts of the high seas" formula, the nonsuspendable right of passage through straits, and the use-requirement that later writers argued over.

The holding was narrow and became canonical. The Court restricted its finding on innocent passage to straits "connecting two parts of the high seas" ². The International Law Commission, beginning its territorial-sea work in 1951, followed the judgment in both the geographical and use factors: "There must be no suspension of the innocent passage of foreign ships through straits normally used for international navigation between two parts of the high seas" ². The 1958 Territorial Sea Convention then expanded the definition to cover straits within one state's territorial sea but with another state's territorial sea at one end — "between one part of the high seas and another part of the high seas or the territorial sea of a foreign State" (TSC, 1958: article 16(4)) — a scope written, the briefing notes, to prevent states in the geographical situation of Egypt, Jordan, or Saudi Arabia from closing off the Israeli port of Eilat from the high seas ².

The case's deeper legacy is the customary rule. In straits used for international navigation, the right of innocent passage is nonsuspendable — in customary law (Corfu Channel, 1949: 29) and conventional law (TSC, 1958: article 16(4)) ². Churchill and Lowe find that "the balance of juristic opinion seems to favour the conclusion that customary law accords only a nonsuspendable right of innocent passage through them" (1988: 89); O'Connell treated the straits regime as an autonomous institution, neither high seas nor territorial sea but somewhere in between (1982: 327) ².

The case also set the counting problem. Before the 1960s, when the three-mile territorial sea was standard, ships enjoyed high-seas freedom through any strait more than six miles wide — Westlake could write in 1904 that straits mattered only where their widths were not more than twice the territorial sea ². The 12-mile sea would have enclosed 116 international straits (Office of the Geographer, 1974; Harlow, 1967) — studies ranged from 102 (Lay et al., 1973) to 130, with 220 international straits identified without regard to width (W. Smith, 1973) — though O'Connell doubted many met the Corfu Channel case's use requirements (1975: 97) ². That enclosure threat is what made the 1982 transit-passage bargain necessary: the Corfu Channel rule, written for a three-mile world, could not survive the twelve-mile one.

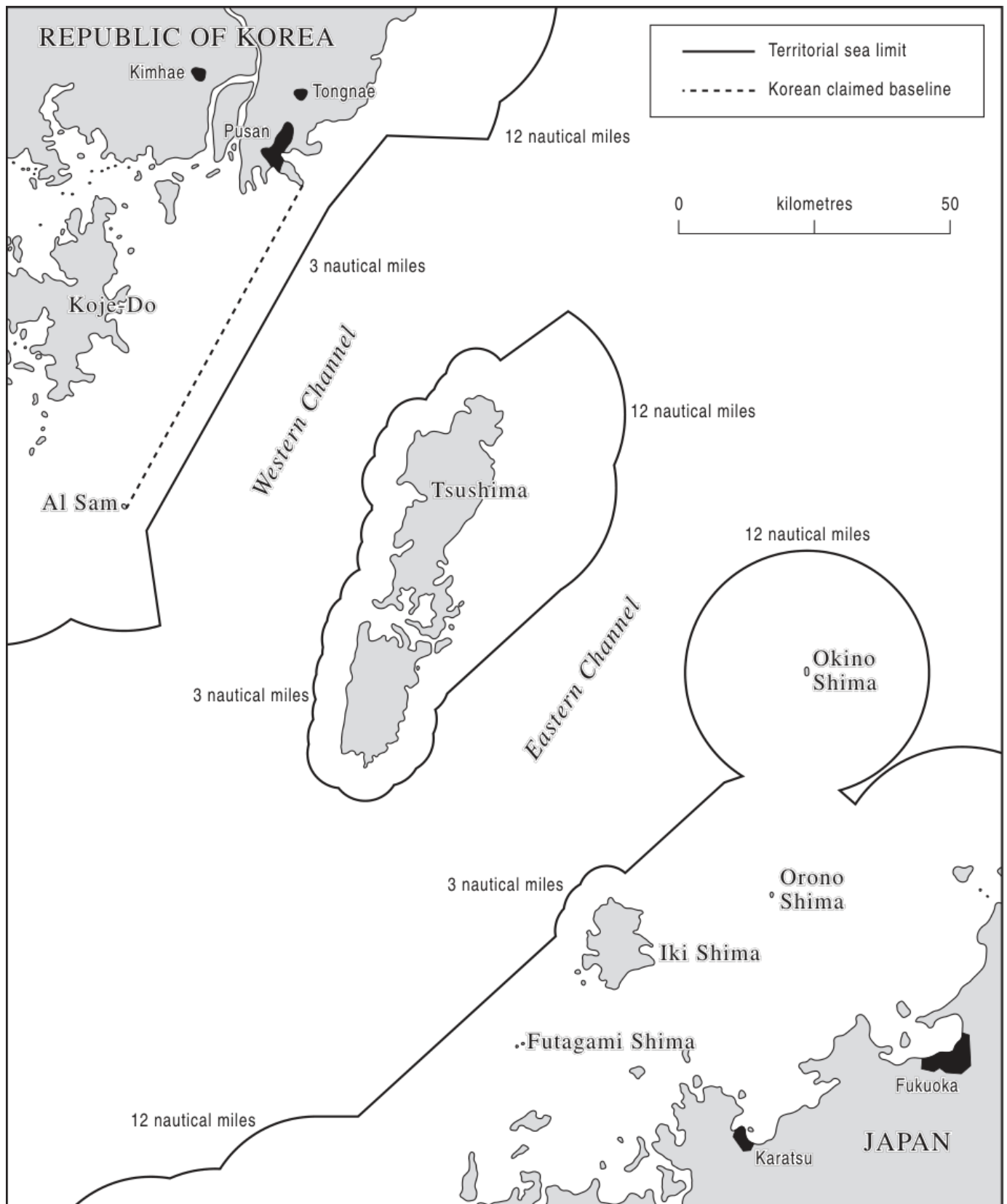


Exhibit. Figure 10: Territorial Sea Limits in the Tsushima Strait
 REPUBLIC OF KOREA Territorial sea limit Kimhae Tongnae
 Korean claimed baseline Pusan 12 nautical miles 0 kilometres 50 3 nautical miles Koje-Do 12 nautical miles Tsushima Al Sam
 Source: S0008.

The legal regime of international straits

The 1982 Convention introduced “a new concept — the right of transit passage through straits used for international navigation — that permits relatively free passage by ships, overflight by aircraft, and submerged transit by submarines through the territorial sea and, under certain conditions, even the internal waters of a coastal state” ². Transit passage is “the principal component of a new legal regime governing straits used for international navigation” ². In many cases it changes little for coastal-state security, because much of the area “was, until recently, regarded as

high seas and thus subject to even more liberal rules of passage” — but in a three-mile belt along each coast of most straits, and throughout some smaller straits, the LOSC applies the new regime to waters long treated as territorial sea [2](#).

The old order it replaced rested on four principles: a 3-nm territorial sea (widely but not universally recognised) with sovereignty subject to innocent passage; the high seas beyond, with equal rights including freedom of navigation; and through international straits, enhanced innocent passage — though “most of the important international straits contained a belt of high seas through which vessels of all states enjoyed freedom of navigation” [2](#). The 1958 conventions (TSC, HSC) largely preserved this system [2](#).

Transit passage applies to “straits which are used for international navigation between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone” (article 37) [2](#). Five areas are expressly exempted from the international-straits regime: internal waters within a strait (except where straight baselines under article 7 enclosed waters not previously internal — article 35(a)); high-seas/EEZ waters (article 35(b)); straits regulated by long-standing conventions (article 35(c)); and straits with a high-seas/EEZ route of similar convenience (article 36) [2](#). A further exemption removes transit passage (but not the straits regime) from straits between a mainland and an island where a seaward high-seas/EEZ route exists [2](#). Article 36’s similar-convenience test is vessel-dependent: a high-seas/EEZ route exists “when, through the entire length of the strait, the territorial seas generated by the land on each side of the strait do not meet” [2](#).

Transit passage in the Russian Arctic straits

The Arctic straits briefing (IBRU Maritime Briefing 1996) runs the transit-passage regime against 43 Russian Arctic straits — and concludes, in the final analysis, that none of the five exemptions removes any of the 43 from the transit-passage regime [2](#).

The five disqualifying conditions are worked through strait by strait. **Not connecting two parts of the high seas or EEZ** is the most problematic: five straits — Blagoveshchenskiy, Zarya, Melyokhov, Longa, and the Kolyma River strait — unambiguously connect two parts of the EEZ; nine others would but for the belt of territorial sea outside the baseline at each end (Yugorskiy Shar, Karskiye Vorota, Matochkin Shar, Borisa Vil’kitskogo, Shokal’skogo, Krasnoy Armii, Yungshturm, Dmitriya Lapteva, Sannikova); the other 29 are entirely within straight baselines and arguably may be excluded — though such an interpretation would create a conflict between article 37 and the internal-waters exception of article 35(a), so it is arguable they satisfy the article 37 condition after all [2](#). **Being in internal waters** (other than newly enclosed under article 7): 38 straits are in internal waters, but all were enclosed by straight baselines — before enclosure they were not internal waters — so their internal-waters status does not disqualify them from transit passage even if the baselines are valid [2](#). **A through route of similar convenience**: the territorial sea has been narrowed in no Russian Arctic strait, and only five are wider than 24 miles; of those, only Blagoveshchenskiy and Longa have EEZ belts — but the unpredictability of ice makes it impossible to categorise any Arctic route as similarly convenient, so the question falls to a vessel-by-vessel determination [2](#). **A seaward route of similar convenience** (island–mainland straits): only 20 straits are even capable of satisfying this exception, and ice again rules it out [2](#). **A long-standing international convention**: none covers any of these straits [2](#).

Whether the straits will be “used for international navigation” within the meaning of article 37 — if the Northern Sea Route initiative succeeds — remains an open question [2](#). Practically, the briefing deflates the stakes: the Northeast Passage straits are mostly unsuitable for submerged submarine transit, warships already enjoy at least innocent passage, and the only significant practical difference may be the overflight provision — which could grant foreign military aircraft access to coastal routes throughout much of the Russian Arctic [2](#). Russia’s strongest argument for complete jurisdiction would be to characterise the Northern Sea Route as a national transport route comparable to Norway’s Indreleia — but the route’s extraordinary variability and the geographical differences with the Indreleia defeat the analogy [2](#). The less contentious solution — an international convention governing the Northern Sea Route, proposed at the First Northern Forum Conference in Tromsø in 1993 — has seen no movement [2](#).



Appendix 2: The Arctic Straits and Baselines

The following eight maps correspond to inserts 1 to 8 above plus insets. They indicate the location of the 43 straits described in Chapter 6 and of the baselines, from the Norwegian frontier to the Bering Strait, established by the decree of 1985. A key to the straits follows.

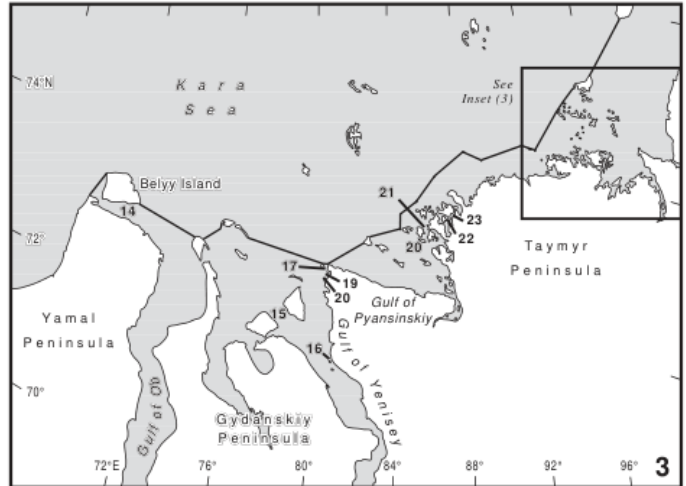
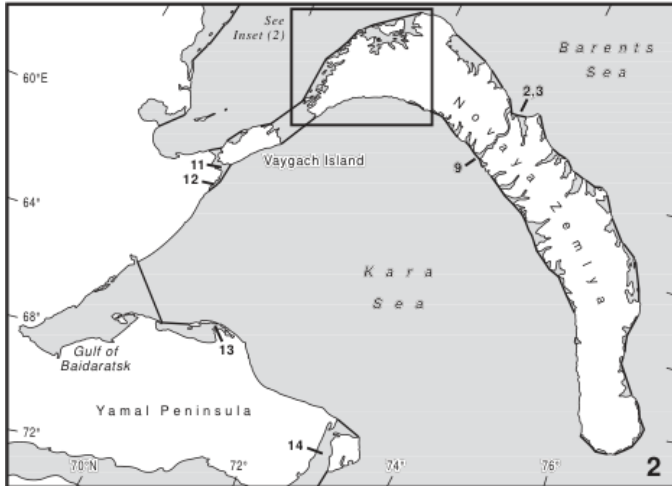
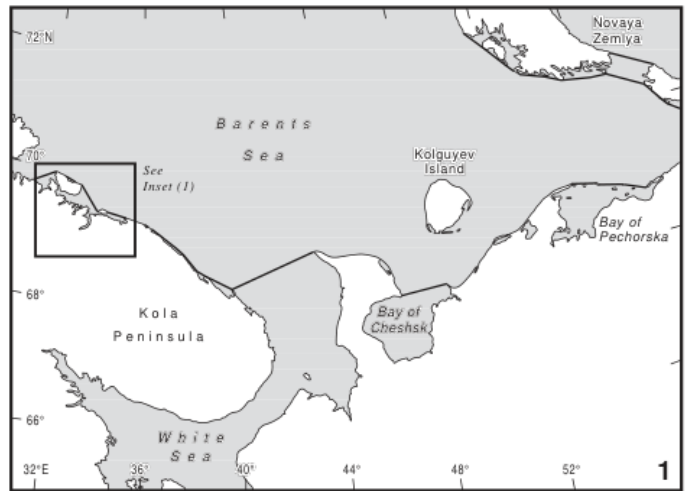


Exhibit. Maps of Straight Baselines and Russian Arctic Straits Novaya Zemlya Barents Sea Kolguyev See Island Inset (1) Bay of Pechorska 68° Kola Bay of 0 km 1500 Peninsula Cheshsk Appendix 2: The Arctic Str. Source: S0010.

The Northern Sea Route: history, straits, and Russian jurisdiction

The Northern Sea Route is the one place in the report where a state claims the straits regime should not apply at all — and the Arctic briefing (IBRU Maritime Briefing 1996) takes the claim apart piece by piece.

The claim is the “national transport route.” Kolodkin and Volosov (1990) argue the Northern Sea Route as a whole should be relegated to the category of national transport routes, like Norway’s Indreleia — confirmed by the ICJ’s 18 December 1951 Anglo-Norwegian Fisheries judgment: the ICJ drew attention to two conditions (other states’ knowledge of the claim, and the absence of negative reactions) and gave a positive reply on whether the waters were sufficiently connected to the land to be under the coastal state’s sovereignty — a reply Kolodkin and Volosov assert is “fully applicable to the USSR” ². The older lineage: Butler (1971) found the strongest Soviet argument in the route’s coastal nature; Vyshnepol’skii’s criteria were not just the oceans and basins but the nature of the usage, the destination of cargo, and the initial and final ports — on which the NSR was a coastal route ². Soviet jurists attributed sovereign rights to “economic, administrative, and scientific activities carried on by the USSR in the northern Polar Basin, to the opening of the northern sea route, to the exploration and discoveries in polar seas by Russian navigators and explorers, and to the historical traditions based on these factors” ². Zhudro went further: foreign vessels under contract to Soviet trade organisations following Soviet navigation instructions indicated acceptance of Soviet authority — the making of a generally recognised international custom (Butler 1971b: 114) ². Butler read the 1967 effort to attract foreign shipping as an attempt “to accentuate the sovereign authority of the USSR over the northern sea route” — and the 1991 NSR Regulations as another ².

The Regulations are the claim in action: advance requests for permission to transit (§3), “special requirements” for vessels (§4), a state pilot for an inexperienced master (§4), proof of financial security for pollution liability (§5), submission to inspection of vessel, cargo, and documents (§6) — with compulsory icebreaker-assisted pilotage in Proliv Boris Vilkitskogo, Proliv Shokalskogo, Proliv Dmitriya Lapteva, and Proliv Sannikova, and in all cases vessels re-

quired to follow assigned routes and route corrections (§7.27.3) ². If foreign vessels routinely adhere, the briefing warns, Zhudro's assertions will resurface in support of the national-transport-route argument ².

The counter-evidence is the baseline history. Russia's territorial sea is 12 miles from baselines including an extensive set of straight baselines — the international validity of which is not settled — enclosing the major straits connecting the Barents, Kara, Laptev, and East Siberian Seas as internal waters ². But unless the straits' waters can be shown to have been regarded as internal waters before their enclosure, innocent passage — and perhaps transit passage — applies ². Despite the virtual unanimity of Soviet commentators, the Soviet government never claimed the straits as historic waters, and Soviet practice was not consistent with their having been internal waters before their enclosure — “there is, in short, no strong argument that the straits were regarded as internal waters before their enclosure by straight baselines in 1985” ². Kolodkin and Volosov's companion argument — no innocent passage through straits enclosed as internal waters, by analogy to Canada's Northwest Passage claims — has, the briefing notes, “little legal foundation”: Canada never ratified the 1958 TSC and based its claims on customary law, while the USSR ratified and is bound by article 5(2), which retains innocent passage through waters enclosed by straight baselines but previously high seas or territorial sea (Franckx, 1993: 185) ².

The contrast with the states that chose to keep straits open is the section's closing frame. Japan extended its territorial sea to 12 miles in 1977 but kept a 3-mile limit in five international straits — Soya, Tsugaru, the eastern and western channels of Tsushima, and Osumi — and its 1996 straight-baseline law kept high-seas corridors in all of them ⁴. South Korea did the same in the Korea Strait; Finland, extending to 12 miles in 1995, kept a 3-mile limit in the Gulf of Finland to preserve the corridor to St Petersburg ⁴. Japan and South Korea narrowed the sea to avoid the regime; Russia built the regime's test case instead.

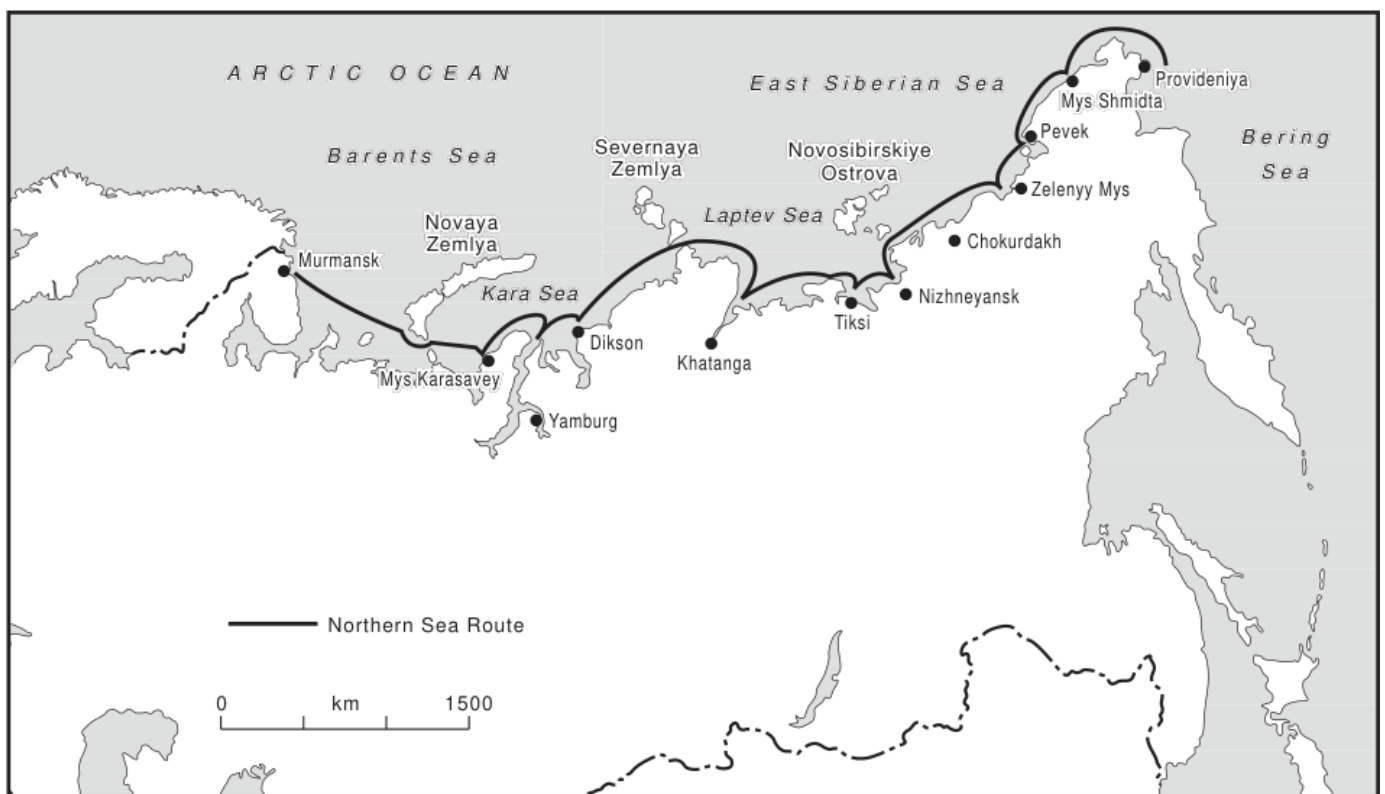


Exhibit. Transit Passage in the Russian Arctic Straits ARCTIC OCEAN East Siberian Sea ●● Provideniya Mys Shmidta ● Pevek Bering Barents Sea Severnaya Novosibirskiye Zemlya Ostrova Sea ● Zelenyy. Source: S0010.

Territorial sea limits in the Tsushima Strait

The corpus's island survey does address the Tsushima Strait's territorial sea limits. Japan extended its territorial sea to 12 miles in 1977; that extension would have created territorial-sea overlap between its islands in five “international straits” — Soya Strait, Tsugaru Strait, the eastern and western channels of the Tsushima Strait, and Osumi Strait — so Japan kept a high-seas corridor by maintaining a 3-mile limit drawn from defined straight lines ⁴. In its 1996 Territorial Sea and Contiguous Zone Law, in which Japan claimed straight baselines, it slightly altered the territorial sea in these five international straits — but the limit remains less than 12 miles and high-seas corridors remain in all of them ⁴. South Korea did the same in the Korea Strait: a 12-mile claim from 1977 with a 3-mile limit maintained in the

strait — and with both states holding 3-mile limits in the western channel, the high-seas corridor survives [4](#). The survey's Figure 10 maps the arrangement: 3-nautical-mile limits around Tsushima, Orono Shima, Iki Shima, and Okino Shima in the Eastern and Western Channels, against the 12-mile limits elsewhere [4](#).

The section's place in the report's arc is the straits block's applied case: after the Corfu Channel foundations (Section 51), the transit-passage regime (Section 52), and the Russian Arctic application (Sections 53–54), the Tsushima Strait is where a coastal state narrows its own territorial sea to keep a strait open — the article 36 "route of similar convenience" exception made real by a 3-mile line.

The Taiwan Strait

No chunk in this prompt addresses the Taiwan Strait's maritime boundary beyond a single sentence, and no further facts are asserted here. The sentence is dispositive: "Until the status of Taiwan is resolved there can be no question of a maritime boundary through the Strait of Taiwan and it is unlikely that Japan or the Philippines would enter into negotiations with Taiwan or with China regarding maritime boundaries based on the coast of Taiwan" [7](#).

The section's place in the report's arc is the straits block's limit case: after Corfu Channel (the foundation), the transit-passage regime (the rules), the Russian Arctic (the contested application), and Tsushima (the narrowed claim), the Taiwan Strait is the strait where the boundary question cannot even be asked — because the sovereignty question underneath it has no answer the parties will accept. The strait's width, the claims across it, and the passage regime within it await their own evidence — but the regime question they would face is the one Section 52 established: transit passage applies to "straits which are used for international navigation between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone" (article 37) [2](#), unless the article 36 exception fires — a route through the high seas or EEZ of similar convenience, in which case the freedoms of navigation and overflight apply instead [2](#). Which of those the Taiwan Strait falls under cannot be determined while the sovereignty question beneath it has no answer the parties will accept.

References

1. 0001-a-square-equal-area-map-projection-with-low-angular-distortion-2008-1367. markdown. Source S0001.
2. 0010-transit-passage-in-the-russian-arctic-straits-ibru. markdown. Source S0010.
3. 0012-talos-manual-technical-aspects-of-the-un-convention-on-the-law-of-the-sea. markdown. Source S0012.
4. 0008-islands-and-maritime-boundary-delimitation-ibru. markdown. Source S0008.
5. 0019-united-nations-convention-on-the-law-of-the-sea-full-text. markdown. Source S0019.
6. Source S0002. Source S0002.
7. 0011-undelimited-maritime-boundaries-of-the-asian-rim-maritime-briefing-vol-3. markdown. Source S0011.
8. 0009-parting-the-red-sea-boundaries-offshore-resources-and-transit-maritime-b. markdown. Source S0009.
9. 0013-land-and-maritime-boundary-between-cameroon-and-nigeria-judgment-of-10-o. markdown. Source S0013.
10. 0021-report-of-the-secretary-general-on-the-situation-concerning-western-saha. markdown. Source S0021.
11. 0014-kashmir-learning-from-the-past-asia-report-n-70-2003. markdown. Source S0014.
12. 0016-comparative-impact-of-execution-of-land-boundary-agreement-2015-on-erstw. markdown. Source S0016.
13. 0015-study-on-present-socio-economic-condition-of-newly-migrated-indian-citiz. markdown. Source S0015.

14. 0017-land-boundary-agreement-2015-between-india-and-bangladesh-a-post-impleme. markdown. Source S0017.
15. 0022-a-decision-and-a-plan-for-peaceful-resolution-of-the-south-china-sea-dis. markdown. Source S0022.
16. Source S0004. Source S0004.
17. Source S0006. Source S0006.